



City Council Meeting

January 20, 2026

6:00 p.m.

Cadillac Municipal Complex

Council Chambers

200 N. Lake St.

Cadillac, MI 49601



January 20, 2026 City Council Meeting Agenda
6 p.m. at City Hall - 200 N. Lake St. – Cadillac, MI 49601

We are fully present

CALL TO ORDER
PLEDGE OF ALLEGIANCE

I. OATH OF OFFICE

Council Member Scott Hopkins (Ward Two)
Council Member Ruthann French (Ward Four)
Mayor David C. Powell

ROLL CALL

II. APPROVAL OF AGENDA

III. PUBLIC COMMENTS

This opportunity for public comment provides the public with a chance to make a statement regarding any subject matter. Public comment is not an opportunity to necessarily ask questions or converse with City Staff, Council Members or other meeting attendees. Contact information for Council and staff is available on our website, www.cadillac-mi.net, or can be obtained by calling (231) 775-0181. Comment time is limited to 3-minutes, and unused time may not be yielded back or given to someone else to use.

IV. PFAS UPDATE

V. CONSENT AGENDA

All items listed on the consent agenda are considered routine and will be enacted by one motion with roll call vote. There will be no separate discussion of these items unless a Council Member so requests it, in which event the items will be removed from the consent agenda and discussed separately.

A. Minutes from the regular meeting held on December 15, 2025
Support Document V-A

Cadillac City Council Agenda

January 20, 2026

Page 2

VI. APPOINTMENTS

- A. Election of Mayor Pro Tem
Support Document VI-A
- B. Recommendation regarding appointment to the Cadillac Housing Commission.
Support Document VI-B
- C. Council Nominee for the Alliance for Economic Success Board of Directors.
Support Document VI-C
- D. City Council Member appointments, regular and alternate, to the Board of Review.
- E. Appointment of Mayor Powell to the Planning Commission.
- F. Recommendation regarding reappointment to the Zoning Board of Appeals.
Support Document VI-F
- G. Recommendation regarding reappointment to the Cemetery Board.
Support Document VI-G
- H. Recommendation regarding reappointment to the Brownfield Redevelopment Authority.
Support Document VI-H
- I. Recommendation regarding appointment to the Downtown Development Authority.
Support Document VI-I

VII. CITY MANAGER'S REPORT

- A. Maple Hill Cemetery Board Recommendations
Support Document VII-A
- B. Early Voting Agreement
Support Document VII-B
- C. Cadillac Housing Commission compensation change request.
Support Document VII-C
- D. Bids and recommendation regarding Tree Removal Services.
Support Document VII-D
- E. Bids and recommendation regarding Compact Tractor Purchase.
Support Document VII-E

Cadillac City Council Agenda

January 20, 2026

Page 3

F. Bids and recommendation regarding Fire Department Portable Radio Purchase.
Support Document VII-F

G. Recommendation regarding approval of entering into an agreement with the DDA for management of the Cadillac Commons.
Support Document VII-G

H. City Manager Adjustment
Support Document VII-H

VIII. INTRODUCTION OF ORDINANCES

A. Adopt resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (407 E. Chapin St.) and set a public hearing for February 2, 2026.
Support Document VIII-A

B. Adopt resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (620 Arthur St.) and set a public hearing for February 2, 2026.
Support Document VIII-B

C. Adopt resolution to introduce Ordinance to Vacate a Portion of Wall Street and Reserve a Public Utility Easement in Favor of the City and set a public hearing for March 2, 2026.
Support Document VIII-C

IX. ADOPTION OF ORDINANCES AND RESOLUTIONS

A. Adopt Resolution Amending General Appropriations Act for Fiscal Year 2026.
Support Document IX-A

X. MINUTES AND REPORTS OF BOARDS AND COMMISSIONS

A. Zoning Board of Appeals
Support Document X-A

B. Planning Commission
Support Document X-B

XI. PUBLIC COMMENTS

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Cadillac City Council Agenda

January 20, 2026

Page 4

obtained by calling (231) 775-0181. Comment time is limited to 3-minutes, and unused time may not be yielded back or given to someone else to use.

XII. GOOD OF THE ORDER

XIII. CLOSED SESSION

Adjourn to closed session pursuant to consider material exempt from discussion or disclosure by statute under MCL 15.268 (h), specifically identified as attorney-client privileged written legal opinions.

XIV. ADJOURNMENT

Core Values (R.I.T.E.)

Respect

Integrity

Trust

Excellence

Guiding Behaviors

We support each other in serving our community

We communicate openly, honestly, respectfully, and directly

We are fully present

We are all accountable

We trust and assume goodness in intentions

We are continuous learners

CITY COUNCIL MEETING MINUTES

December 15, 2025

Cadillac City Hall - 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

The meeting was called to order by Mayor Schippers at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

ROLL CALL

Council Present: Elenbaas, Hopkins, Engels, French, Mayor Schippers

Council Absent: None

Staff Present: Peccia, Dietlin, Waldo, Ottjepka, Bertram, Homier (via Zoom), Lanning

APPROVAL OF AGENDA

2025-270 Approve agenda as presented.

Motion was made by Elenbaas and supported by French to approve the agenda as presented.

Motion unanimously approved.

PUBLIC COMMENTS

Mark Lagerwey thanked the Council Members for their service, especially Mayor Schippers, during this interesting year.

PFAS UPDATE

Jeff Dietlin, Director of Utilities, noted the State of Michigan came unannounced in November and took PFAS samples at the wastewater plant and at the LDFA groundwater plant. He stated both of those were very comparable to their last results which were below both the state and the new federal drinking water standards. He noted at the LDFA we did a test for the PFAS coming into the air stripping tower and leaving the air stripping tower to see if we are losing any in the air stripping and it looks like we're not losing anything. He stated that chemical seems to be bound up in the water and not being stripped off.

CONSENT AGENDA

2025-271 – Approve consent agenda as presented.

Motion was made by Elenbaas and supported by French to approve the consent agenda as presented.

Motion unanimously approved.

PROCLAMATION

A. Wexford County Council on Aging 50th Anniversary

Mayor Schippers read a proclamation recognizing the 50th Anniversary of the Wexford County Council on Aging (see attachment).

COMMUNITY SPOTLIGHT

A. Wexford County Council on Aging

Georgie Bump, Executive Director, noted the Wexford County Council on Aging is a nonprofit organization. She stated that their mission is to serve people 60 and over to help them have healthy, safe and independent lives. She noted half of their services are free and the other ones are based on a sliding scale to make sure seniors have access to their services regardless of income. She stated they offer in-home services such as personal care, light housekeeping, respite care, and medication set-ups. She noted for over 25 years they have had an adult day center near the hospital to provide respite to caregivers who provide caregiving 24/7 for their loved ones. She stated the center provides caregivers with a break and gives their loved ones the opportunity to socialize, play games and participate in other activities.

Ms. Bump mentioned other services they provide such as foot care services, notary services, snow plowing assistance, Senior Project Fresh assistance, Medicaid and Medicare assistance and an advocacy program that helps seniors find resources in the area. She noted they do the Senior Expo every other year and send out a bi-monthly newsletter with information for seniors to help them stay informed.

Ms. Bump stated over the last 11 months they have done over 10,000 hours in the homes with seniors and over 5,000 hours of support at the adult day center. She noted their advocacy program touched 350 people in the last 11 months. She stated their open enrollment program serviced 650 people and saved the residents in our county over a million dollars for their next year plan.

Ms. Bump stated their budget is usually about \$2 million and 68% of that budget is senior millage money. She noted that the senior millage will be on the ballot again in 2026. She stated they try not to overlap with other services. She noted they partner with a lot of organizations and she described some of the services offered through those partnerships.

Diane Patterson, Director of the Cadillac Senior Center, stated they are partly funded through millage dollars. She noted they are a community schools program which is a collaboration with the City of Cadillac and the community schools. She stated they have a plethora of activities from fitness activities to social activities. She thanked the City for use of the building. She noted they were labeled by numerous insurance agencies as a fitness center which means they receive some funding through the insurance companies for having people participate in their activities. She stated their newsletter can be viewed on their website at www.CadillacSeniorCenter.org.

Ruthann French noted she has served on the board of the Council on Aging for the last 12 years and she is amazed at the dedication of the staff. She stated our seniors are in good hands but often people still don't know they exist so hopefully this will give a further

platform to the organization. She noted one thing that wasn't mentioned is that the Senior Center takes people on bus trips all over the country.

CITY MANAGER'S REPORT

A. Calendar Year 2026 Council Meeting Schedule

Peccia noted the Council packet contains a communication that lists the recommended schedule for 2026. He noted City Council may call special meetings whenever the need arises.

2025-272 Approve Calendar Year 2026 Council Meeting Schedule.

Motion was made by Elenbaas and supported by Engels to approve the Calendar Year 2026 Council Meeting Schedule as presented.

Motion unanimously approved.

B. Emergency Purchases

Peccia reported out on three recent emergency purchases: Demolition of 536 Cedar Street, Repair of street light electrical box, and Replacement radios (Cadillac Fire Department). The specifics of the emergency purchases that he discussed were listed on the Council Communication that was included in the packet.

C. Update on Grants

Peccia thanked City Council, staff, and our consultants for all of their effort to obtain the various grants that the City has received. He noted it is truly a team effort. He referenced a chart showing outside funding sources for the past ten (10) years and briefly discussed some of the grant funding received over the past five (5) years (see attachment).

MINUTES AND REPORTS OF BOARDS AND COMMISSIONS

A. Elected Officials Compensation Commission (draft minutes)

B. Zoning Board of Appeals

C. Planning Commission

PUBLIC COMMENTS

Shari Spoelman recognized Mayor Schippers for stepping in to be the interim Mayor and also recognized her for her 16 years of service on City Council.

Gary VanHouten expressed his gratitude to Mayor Schippers for taking over after the resignation of Mayor Filkins. He noted she has always served with high integrity and wisdom.

Martin Dubravec noted the meetings held regarding zoning have been held during the business day so he

has been unable to attend. He stated he has been unable to locate the survey on the City's website. He noted he believes the new City Council should spend time on enforcement before we change existing zoning. He stated he is not opposed to an owner-occupied bed and breakfast or spot zoning, especially in a historic neighborhood.

GOOD OF THE ORDER

Elenbaas asked the City Manager if there has been any progress on the Wexford Jewelers parking lot situation.

Peccia noted we did receive a notice of award of a couple million dollars from the State of Michigan as a part of their overall budgeting process for their fiscal year that started in October. He stated that money is now in the hands of the Michigan Department of Labor and Economic Opportunity. He noted there is no known date yet from that department of when they're going to reach out to us to get the project started.

Elenbaas thanked the Senior Center and the Council on Aging. He noted both organizations do a great job.

Peccia explained where to locate the zoning survey on the City's website. He noted the poster board in the lobby has a QR code to get you right to that survey and we did send the QR code in a mailer through utility bills to every account in the City. He stated there are two different types of meetings occurring. He noted there are advisory committee meetings during the day and they are open to the public, but they have been scheduled around the availability of that group. He stated there are educational session meetings that are held in the evenings geared more towards providing an opportunity for the public to participate and have input. He noted this is all just research and information gathering. He stated ultimately the consultant will be putting a report together that will provide their findings and then it will go to the Planning Commission before it comes back to City Council for consideration. He noted those processes dictate legally that there are formal public hearings.

Peccia provided an update on winter snow removal operations.

Peccia stated he has been here for the entire 16 years that Mayor Schippers served on City Council. He noted it is a very bittersweet moment for him personally and professionally. He thanked Mayor Schippers for her mentorship and the time she has committed to not just the community but to this organization.

French thanked Mayor Schippers and noted that if it hadn't been for her, she wouldn't be in this seat. She noted she has appreciated her short tenure here and thanked all of the voters for giving her another four (4) years. She stated she has enjoyed the short time she has been in this seat and she appreciates the opportunity to work with these good people and staff doing the good work of the City. She noted she hopes everybody has a good holiday with family and friends.

Elenbaas noted that he and Mayor Schippers haven't agreed on everything in the past but they have managed to keep it civil most of the time and still talk to each other. He thanked Mayor Schippers for her service.

Mayor Schippers responded by stating that they both agree on wanting to do what is best for our City.

Mayor Schippers read a prepared statement (see attachment).

ADJOURNMENT

Respectfully submitted,

David C. Powell, Mayor

Sandra Wasson, City Clerk

WEXFORD COUNTY COUNCIL ON AGING

50TH ANNIVERSARY PROCLAMATION

WHEREAS, the Wexford County Council on Aging (COA) was established in 1975 to serve and support older adults in Wexford County; and

WHEREAS, the COA provides essential services such as in-home support, adult day care, and resource connections to help seniors remain independent and engaged in the community; and

WHEREAS, the COA serves hundreds of seniors aged 60-100 annually and partners with local organizations to ensure older adults have access to the care and support they need; and

WHEREAS, the COA was funded fully by donations at the beginning stage until 2000 when they became funded by millage support. Currently, they are receiving over \$1.3 million in funds which allows the council to expand programs, add staff, and continue meeting the needs of local seniors; and

WHEREAS, programs and services have grown over the years to include housekeeping services like cooking, cleaning, and laundry assistance, respite care for caregivers, personal care needs like medication set-up, and options counseling; and

WHEREAS, the COA, now in its 50th year, continues to be a valuable resource for seniors' individual needs and their families who are seeking guidance to support their loved ones.

NOW, THEREFORE, join me, Tiyi Schippers, Mayor of the City of Cadillac, in recognizing the 50th anniversary of the Wexford County Council on Aging for providing much needed services to our seniors countywide this 15th day of December, 2025.

Tiyi Schippers, Mayor

City of Cadillac

CITY OF CADILLAC OUTSIDE FUNDING SOURCES	Funding Source	REQUESTED 2016	REQUESTED 2017	REQUESTED 2018	REQUESTED 2019	REQUESTED (COVID Year) 2020	REQUESTED 2021	REQUESTED 2022	REQUESTED 2023	REQUESTED 2024	REQUESTED 2025	RECEIVED Total's	
Rotary Performing Arts Pavilion \$50,000 MEDC	MEDC Mi Econ Dev & Patronicity Crowd/funding	\$122,000										\$ 122,000.00	
Cadillac Commons Market Pavilion \$50,000	MEDC Mi Econ Dev & Patronicity Crowd/funding	\$112,000										\$ 112,000.00	
Potvin Industrial Park road extension	MEDC						\$100,000					\$ 100,000.00	
Cadillac Lofts Brownfield	MDEQ				\$250,000							\$ 250,000.00	
Mitchell Bentley site Brownfield	MDEQ				\$700,000							\$ 700,000.00	
CACF & Rotary grants for Commons bike racks	CACF & Rotary for Dist 6290-Rotary matching					\$2,500						\$ 2,500.00	
Cadillac Lofts Community Block Grant	MEDC Mi Economic Dev Corp				\$831,864							\$ 831,864.00	
Community Prosperity Grant	Consumers Energy Foundation						\$250,000					\$ 250,000.00	
Diggins Hill Revitalization	Rotary Club of Cadillac									\$79,073		\$ 79,072.61	
Diggins Hill Revitalization	Rotary Club of Cadillac										\$38,800	\$ 38,800.00	
Diggins Hill Revitalization	CACF/Potvin/MacLeod/Frier/Cadillac LLC								\$20,700			\$ 20,700.00	
Cyber Security	SOMI								\$32,400.00			\$ 32,400.00	
Cyber Security	SOMI								\$17,600.00			\$ 17,600.00	
BEP/LBA Blight Grant	State Land Bank Administration										\$792,255	\$ 792,255.00	
Cadillac Lofts 2 Brownfield Redevelopment Grant	EGLE										\$817,925.00	\$ 817,925.00	
Sound Garden	CACF/Kellogg Foundation Youth Grant		\$5,500									\$ 5,500.00	
Sound Garden	Cadillac Garden Club		\$4,000									\$ 4,000.00	
Sound Garden	Michigan Council for Arts & Cultural Affairs		\$8,750									\$ 8,750.00	
Market Renovations	MEDC Public Gathering Spaces								\$750,000			\$ 750,000.00	
Rotary Performing Arts Pavilion & new restroom	Rotary Club of Cadillac	\$160,000										\$ 160,000.00	
Cadillac Commons Plaza	Consumers Energy Foundation	\$50,000										\$ 50,000.00	
Cadillac Commons	Cadillac Area Community Foundation	\$50,000	\$50,000				\$10,000					\$ 110,000.00	
Cadillac Commons	DCA Downtown Cadillac Association	\$2,500	\$2,500									\$ 5,000.00	
Cadillac Commons	Visitors Bureau \$25,000 spread over five years	\$5,000	\$5,000	\$5,000	\$5,000							\$ 20,000.00	
Cadillac Commons	Ery Foundation/Market Place		\$25,000									\$ 25,000.00	
Cadillac Commons	Networks Northwest for Plaza Banners		\$9,000									\$ 9,000.00	
Cadillac Commons Ice Rink	CACF/Kellogg Foundation Youth Grant	\$6,000										\$ 6,000.00	
DDA Down town City Park Infrastructure Place Plans	Michigan Economic Development Corporation	\$200,000										\$ 200,000.00	
Cadillac Commons Shay Locomotive	Rotary Club of Cadillac						\$10,000					\$ 10,000.00	
Cadillac Commons White Pine Trailhead	MDNR Trust Fund Grant							\$265,000				\$ 265,200.00	
DDA Down town Hanging Baskets	Businesses, residents, non-profits		\$5,393	\$5,516								\$ 10,909.00	
Technical Support	MEDC						\$5,000					\$ 5,000.00	
Owl Eye Coffee Match on Main	MEDC Match on Main Street							\$25,000				\$ 25,000.00	
Simply Delightful	MEDC Match on Main Street							\$25,000				\$ 25,000.00	
Charming North	MEDC Match on Main Street								\$25,000			\$ 25,000.00	
The Ice Cream Shop	MEDC Match on Main Street								\$25,000			\$ -	
Walgreen	MEDC Match on Main Street									\$25,000		\$ 25,000.00	
Burkes Waterfront Restaurant	MEDC Match on Main Street										\$25,000	\$ -	
Renegade	MEDC Match on Main Street										\$25,000	\$ 25,000.00	
Owl Eye Coffee	MEDC Optimize Main Street								\$2,500			\$ 2,500.00	
Cozy Co.	MEDC Optimize Main Street								\$2,500			\$ 2,500.00	
After 26 Depot	MEDC Optimize Main Street							\$2,500				\$ 2,500.00	
Charming North	MEDC Optimize Main Street							\$2,500				\$ 2,500.00	
T-Mobile Community Art	T-Mobile Main Street America										\$50,000		
West Corridor Lighting	T-Mobile Main Street America										\$50,000		
Diggins Hill Sensory Park	MDNR Recreation Passport										\$127,800	\$ 127,800.00	
Diggins Hill Sensory Park	MDNR Trust Fund Grant										\$127,600		
Diggins Hill Park	DTE Energy										\$50,000		
Consumers Foundation Grant	Consumers Foundation										\$ 250,000.00		
Zoning Rewrite	MSHDA HRI									\$39,600			
Blight Grant	Mi Land Bank Fast Track Authority	\$79,000										\$ 79,000.00	
Portable Radios	FEMA Assistance to Firefighters	\$59,977										\$ 59,977.00	
Seven AED Defibrillators	Asst. to Firefighters				\$21,000							\$ 21,000.00	
Fire Gear	SOMI									\$34,827.50		\$ 34,827.50	
Portable Radios	Firefighters Grant Program										\$ 240,000.00	\$ 192,380.95	
DTE ReLeaf Grant	DTE								\$5,000			\$ 5,000.00	
Community Tree Planting Grant	Consumers Energy	\$2,500	\$2,500	\$2,500	\$2,500			\$2,500	\$2,500	\$2,800	\$2,800	\$ 2,800.00	
USDA Forest Tree Grant	DTE through MDNR	\$3,000	\$3,000	\$3,000	\$3,000	\$3,000		\$4,000				\$ 19,000.00	
Community Forestry Grant	MDNR Urban Forestry										\$147,000	\$ 90,000.00	
Kenwood Beach/Boat Launch restroom	MDNR Land & Water Conservation Fund Grant			\$80,000								\$ 80,000.00	
Police Resource Officer, School Liaison	US Dept of Justice COPS Grant \$175,000 over 4 years	\$31,250	\$31,250									\$ 62,500.00	
Police car AED's (4)	US Homeland Security/Wexford Emergency	\$20,000										\$ 20,000.00	
Police Safety Vests	United States BVP program for police vests		\$5,003									\$ 5,003.00	
Police Academy Grant	SOMI									\$77,777.36		\$ 77,777.36	
STP/SUP West Division St & Cobb St. Improvements	MDOT Administers the program in MI	\$375,000										\$ 375,000.00	
STP/SUP Leeson Ave. Improvements	MDOT Administers the program in MI		\$176,250									\$ 176,250.00	
Shared Streets and Spaces Grant Award	MDOT									\$200,000		\$ 200,000.00	
Cadillac Sewer & Water Development, SAW Grant	Mi Dept. of Environmental Quality \$2,000,000 awarded	\$1,000,000	\$500,000									\$ 1,500,000.00	
Wellhead Protection Grant, Drinking Water	Mi Dept of Environmental Quality Wellhead Protection	\$7,500			\$7,500		\$7,500					\$ 22,500.00	
Amp/Dem.	Mi Dept of Environment, Great Lakes, & Energy (EGLE)							\$524,056				\$ 524,056.00	
SLBA Blight Elimination Grant	State Land Bank Administration								\$33,374			\$ 33,374.00	
PFAS Mitigation	Congressman Molesnar										\$8,200,000		
PFAS Mitigation	Senator Peters										\$8,200,000		
PFAS Mitigation	Michigan Legislature, Senator Fox										\$8,200,000		
Solar for All Pilot	EGLE										\$3,000,000	RE-INDENT	
PFAS Assessing and Mitigation	EGLE										\$8,200,000	\$ 8,200,000.00	
Lead and Copper Grant	EGLE										\$406,583	\$ 406,583.00	
Culvert	Senator Slotkin							\$7,000,000				\$ 2,054,300.00	
Cadillac Commons Splashpad	Chamber of Commerce Leadership	\$78,000										\$ 78,000.00	
Cadillac Commons Shay Locomotive	Chamber of Commerce Leadership						\$55,000					\$ 55,000.00	
Cadillac Commons Shay Locomotive	Cadillac Area Community Foundation						\$10,000					\$ 10,000.00	
Cadillac Commons	Cadillac Lions Club	\$7,700										\$ 2,700.00	
Cadillac Common's Trailhead	A Front Credit Union							\$7,800	\$7,845,874	\$529,777	\$38,950,763	\$ 20,463,804.42	
Totals:		\$2,366,427	\$656,896	\$272,266	\$1,820,864	\$5,500	\$447,500	\$863,056	\$7,845,874	\$529,777	\$38,950,763	\$ 20,463,804.42	

Mayor Tiyi Schippers: Final Statement

15 December 2025

When I was first elected in 2009 we were in the middle of the Great Recession. The City of Cadillac was showing signs of wear. Our constitutionally “guaranteed” state revenue sharing had been slashed, creating major financial challenges for the city. We had to tighten our belts, and pare down to a much leaner organization. We did this through attrition, not filling positions held by retiring staff. Of course that didn’t mean we would no longer perform those duties. It meant that the remaining staff had to wear multiple hats to keep things running seamlessly, and they did.

Manufacturers struggled to stay afloat, downtown businesses were doing the same with many empty storefronts, and an uninspiring streetscape and landscape.

City Council itself was mired in disagreement, and discord with separate factions pitted against each other hindering progress. I was asked by both factions to run, and while it was the furthest thing from my mind, and further, still, from my life plan, I accepted the challenge, and ran as a bridge builder. At that time, I willingly admit, I was clueless, but, luckily, we had a talented professional staff who showed me the ropes, and, of course, I was willing to learn.

Since that time I have shared this side of the dais with a plethora of different council members, some forward focused and some not so much, but despite all that challenge and change, in the past 16 years we have seen a remarkable transformation in our city.

We have brought community together to create a vision and implement one of the first, and by far most successful, crowd funded public development projects in Michigan. We transformed an ugly eyesore of a parking lot between the core downtown and beautiful Lake Cadillac, into The Cadillac Commons, with incredible public spaces including The Market, Trailhead, Rotary Performing Arts Pavilion, splash pad, fireplace, and picnic areas. The overhead wires that crisscrossed the area were buried creating an unhindered view of our lovely lakefront. By the way, this project rightfully earned our City Manager, Marcus Peccia, multiple accolades including the Michigan Municipal League's Community Builder Award.

During my tenure we have faced and met many challenges.

When the only municipal wellfield was situated adjacent to heavy industry with a contaminated plume making its way steadily toward it, we worked to find funding to build, and get on line, two new state of the art, separate wellfields, each tapping aquifers of the highest quality. Cadillac municipal water is safe well into the future.

When the job creators in the community described the need for workforce housing we joined with regional housing experts to find a way to meet that need. We set out to make zoning adjustments and attract developers, generating many new housing units, with more on the way. Again we, meaning our city manager received another award, The Community Cornerstone Award for Housing Leadership by Networks Northwest.

When unemployment plagued the community we attracted new manufacturers and small businesses to Cadillac, bringing more good jobs.

While other small cities struggled to keep their downtowns alive we worked with the DDA and Community Development to help transform downtown into a thriving destination for citizens and visitors alike. We have seen entrepreneurs, developers, and small business owners choose Cadillac, helping make this a great place to live, work, raise a family, and shop.

When short term rentals threatened to disturb the peace in residential neighborhoods, we added language to the zoning code to delineate where and where not STRs could exist. Then in answer to the rising need, created a new position within public safety for a code enforcement officer who reports each month on her progress.

We created The Cadillac West Authority that provides our tourist district along M115 to cooperate, improve, and thrive with a focus on our visitors as well as citizens of Cadillac and the surrounding areas. Since then that business district continues to crush it with new businesses, festivals and events that draw flocks of folks to the area.

Then, when faced with the reality of forever chemicals in local private wells we worked with MPART, community organizers, the health department, and more to seek solutions to protect all our neighbors from contaminated water.

We implemented a private well testing program, free to city residents, then helped them navigate how to get filters if needed. Meanwhile providing free safe drinking water, first delivered to homes testing

positive for these forever chemicals, then offering free drinking water distributed at the west side wellfield.

Meanwhile we worked, undaunted, seeking funding to help our neighbors hook up to Cadillac municipal water that is regulated, tested, with PFAS never detected. Denied by multiple grant sources, our hard work finally paid off with probably the largest grant the city has ever received. 8.2 million dollars to get everybody hooked up and safe.

There are many other improvements, though smaller and less obvious than the ones I've already pointed out.

- We have curbside recycling.
- We have a huge swath of land on the east side ripe for new housing and economic development.
- We have a roundabout that replaced a dangerous intersection at Plett Rd. and 13th street, and another on the east side at Cass and Crosby roads
- We have a new home for New Hope Shelter.
- We have implemented a natural shoreline in the lakefront park to curb erosion, deter geese, and help keep the lake clean.
- We have managed Eurasian milfoil in the lake, keeping it the recreational jewel it is.
- We have new pickle ball courts along the lake.
- We have worked with The Senior Center and Up North Arts to improve and maintain the old Naval Reserve building.
- We have managed and beautified Maple Hill Cemetery.
- We have restored and improved the sound garden.
- We have a new walking bridge over the Clam River on the McKellop walkway.
- We have several displays of public art in the parks.
- We have two new playgrounds, both the "Blue" accessible playground along the lake, and the new playground on Diggins Hill, with a brand new grant recently awarded for phase 2, a sensory playground, also on Diggins Hill.
- We have two new micro parks along The White Pine Trail.
- We have repaired hundreds of miles of streets and infrastructure throughout the city.
- We have new police cars and gear for both police and firefighters.

That's quite a list, and I could go on, but I think you get the point. However, there is another essential point I really need to make before leaving this dais for the last time.

When I say “WE” describing each of those remarkable accomplishments over the past 16 years, what I really mean is the people who work every day in this building, or the water treatment plant, wellfields, stores, maintenance buildings and more.

Sure, the City Council made policy, but these folks made it happen.

I mean the folks who staff the front desk, the clerk, treasurer, community development team, public safety, finance, human resources, utilities, and public works. I mean the folks who keep the parks beautiful, who show up to make sure the facilities are ready for events. The folks who run your elections, take minutes, and maintain the website and social media presence. The folks who process your utility bills, FOIAs and applications and permits.

I mean the folks who water the plants, hang banners across Mitchell Street downtown, The folks who empty the trash cans in the park. I mean Jed, who makes sure folks at home can watch city meetings keeping this work transparent.

And I mean the department heads who manage all the folks who do this good work. Sandi Wasson, Teresa Waldo, Owen Roberts, Todd Keway, Adam Ottjepka, Keri Lanning, Ken Payne, and Jeff Dietlin.

And I mean Marcus Peccia, who manages all of it.

I have watched these folks do their job every day, even under fire amidst vitriol and unmitigated accusations and attacks. I have watched them put their noses to the grindstone, tirelessly focused on solutions while neighbors screamed for retribution.

I need you to know that when people tried to tell me that leadership and staff heads needed to roll because of incompetence, my thoughts were fixed solidly on the list I just shared, and the daily work I witnessed.

Nobody is perfect. Mistakes have been made, but when you have the long view, when you see the big picture you can't help but see that this city I love, and the people who live here are in good hands.

I leave with profound gratitude for the opportunity to have served my community beside these good people, all of them, as well as my fellow council members.

Finally, I want to leave you with a wish and a blessing for our next mayor, and all the council members who will continue to serve long after I am gone.

My wish is that you, too, will see the remarkable work the folks here do everyday, and feel the same gratitude I do. My blessing is for that gratitude to be your guide, and your love for our community and neighbors wellbeing help you lead with wisdom and compassion.

Thank you again for trusting me to serve this wonderful city, clearly the Cadillac of Michigan.

January 20, 2026

Council Communication

Re: Election of Mayor Pro Tem

The Council shall elect one of its members to serve as Mayor Pro Tem for a term to coincide with the Mayor's two-year term of office. Such election shall be by written ballot and by majority vote of the members of the Council in office at the time.

The City Clerk will distribute blank pieces of paper to each Council Member to serve as a ballot for the purpose of writing the name of the Council Member that they wish to select as Mayor Pro Tem. The City Clerk will collect the ballots, tally, and then read aloud the results.

January 20, 2026

COUNCIL COMMUNICATION

Re: Appointment of Amy Kotulski to a Five-Year Term on the Cadillac Housing Commission.

Amy Kotulski has expressed her interest in being appointed to serve as a member of the Cadillac Housing Commission.

Requested Council Action:

Motion to appoint Amy Kotulski to a five-year term on the Cadillac Housing Commission, which will end on 1/20/2031



Application for Appointment to Standing and Special Committees, Boards & Commissions

The information provided on this form is for the use of the Cadillac City Council in its deliberation to fill vacancies on standing and special committees, boards and commissions. Applications may be submitted at any time and will be kept on file for a period of one (1) year. In most cases, you must be a resident of the City of Cadillac to serve on its committees, boards and commissions. Exceptions include the DDA, CBOA, LDFA, Clam River Greenway Committee and Brownfield Redevelopment Authority. Applicants may be required to interview with the City Manager for appointment consideration.

To which committee, board or commission are you seeking appointment? Please check all that apply.

- | | |
|--|---|
| ☐ Airport Authority | ☐ Economic Development Corporation |
| ☐ Board of Review | ☐ Elected Officials Compensation Commission |
| ☐ Brownfield Redevelopment Authority | ☐ Election Commission |
| ☐ Cadillac Area Council for the Arts | ☒ Housing Commission |
| ☐ Cadillac-Wexford Transit Authority | ☐ Local Development Finance Authority |
| ☐ Cadillac West Corridor Improvement Authority | ☐ Planning Commission |
| ☐ Cemetery Board | ☐ Retirement Board to Administer Act 345 |
| ☐ Civil Service Commission | ☐ Zoning Board of Appeals |
| ☐ Clam River Greenway Committee | ☐ Construction Board of Appeals |
| ☐ Historic Districts Commission | ☐ City of Cadillac/Clam Lake Joint Planning Commission |
| ☐ Diggins Hill Tennis Court Fundraising Committee | |
| ☐ Downtown Development Authority | ☐ Other _____ |

Please print or type:

Name Amy Kotwelski Address [REDACTED]

Telephone: Home [REDACTED] Business [REDACTED]

E-mail [REDACTED] Date available for appointment open

Please complete the following. You may use additional sheets as needed.

Community Service

List boards, commissions, committees or community service organizations that you are currently serving or have served upon, offices held, and in what municipality or county.

- Human Services Leadership Council (I also serve on the executive committee of this council)
- Housing Advocacy Committee (Wey / Milwaukee)
- Active member in Cadillac Area Chamber of Commerce

Employment and Education

List any employment experience or education that, in your opinion, best qualifies you for this appointment. List job titles, duties (current and past), level of education and any certificates or degrees you have obtained.

I am the Director at Club Cadillac which follows the Clubhouse model. Housing is a large part of the Clubhouse model outlined in Standards 29 A-F. I am active on the Housing Advocacy Committee, and am dedicated to improving and assisting in the housing crisis in any way I am able to. I also have a masters degree in Administration.

Have you ever worked for the City of Cadillac? ☐ Yes ☒ No
If yes, please list dates and names of departments.

Why do you have interest in serving on this board/commission/committee?

It is in our Clubhouse standards to ^{secure} ~~provide~~ safe, decent, and affordable housing to our members. Housing has been an ongoing issue in the Cadillac area and I would like to be involved as part of the solution and joining the Housing Commission is a step toward solutions.

Personal

Rules of law and ethics prohibit appointees from participating in and voting on matters in which they may have a direct or indirect financial interest. Are you aware of any potential conflicts of interest? ☐ Yes ☒ No

If yes, please indicate potential conflicts.

None

Are you aware of the time commitment necessary to serve on the committee, board and/or commission to which you seek appointment, and will you have such time? ☒ Yes ☐ No

Please provide information about specific training, education, experience or interests you possess that qualify you as an appointee to the position you seek.

My experience working in the Clubhouse model as well as work on various Housing and Human Service related community committees.

I hereby certify that the preceding information is correct to the best of my knowledge.

Signature

Amy Hotala

Date

11-20-25

You are invited to attach additional pages, enclose a copy of your résumé or submit supplemental information that you feel may assist in the evaluation of your application.

Mail or return your completed application to:

Marcus Peccia, City Manager
City of Cadillac
200 N. Lake St.
Cadillac MI 49601

Thank you for giving us the opportunity to consider you for appointment.

January 20, 2026

Council Communication

Re: Council Nominee for the Alliance for Economic Success Board of Directors

In accordance with the City's agreement with the Alliance for Economic Success (AES), City Council shall nominate one member to be appointed to their Board of Directors, which typically meets once monthly. The nominee may be a member of Council but may also be a member of staff or the public and is subject to AES Board approval. Prior nominees have been currently sitting Council members.

Recommended Action

Nominate someone to serve as a member on the AES Board of Directors.

January 20, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Larry Bontrager to a Three-Year Term on the Zoning Board of Appeals

Larry Bontrager has expressed his interest in continuing his service to the Zoning Board of Appeals for another three-year term. He was originally appointed in 2003.

Requested Council Action:

Motion to reappoint Larry Bontrager to a three-year term on the Zoning Board of Appeals, which will end on 1/21/2029.

January 20, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Charles LaBar to a Three-Year Term on the Cemetery Board

Charles LaBar has expressed his interest in continuing his service to the Cemetery Board for another three-year term. He was originally appointed in 2012.

Requested Council Action:

Motion to reappoint Charles LaBar to a three-year term on the Cemetery Board which will end on 1/20/2029.

January 20, 2026

Council Communication

Re: Reappointment of Mike Figliomeni to a Three-Year Term on the Brownfield Redevelopment Authority

Mike Figliomeni has expressed his interest in continuing his service on the Brownfield Redevelopment Authority for another three-year term.

Requested Council Action:

Motion to reappoint Mike Figliomeni to a three-year term on the Brownfield Redevelopment Authority, which will end on 1/20/2029.

January 20, 2026

COUNCIL COMMUNICATION

Re: Appointment of Tiyi Schippers to a Four-Year Term on the Downtown Development Authority.

Tiyi Schippers has expressed her interest in being appointed to serve as a member of the Downtown Development Authority.

Requested Council Action:

Motion to appoint Tiyi Schippers to a four-year term on the Downtown Development Authority, term will end on 1/20/2030.



Application for Appointment to Standing and Special Committees, Boards & Commissions

The information provided on this form is for the use of the Cadillac City Council in its deliberation to fill vacancies on standing and special committees, boards and commissions. Applications may be submitted at any time and will be kept on file for a period of one (1) year. In most cases, you must be a resident of the City of Cadillac to serve on its committees, boards and commissions. Exceptions include the DDA, CBOA, LDFA, Clam River Greenway Committee and Brownfield Redevelopment Authority. Applicants may be required to interview with the City Manager for appointment consideration.

To which committee, board or commission are you seeking appointment? Please check all that apply.

- | | |
|--|---|
| ☐ Airport Authority | ☐ Economic Development Corporation |
| ☐ Board of Review | ☐ Elected Officials Compensation Commission |
| ☐ Brownfield Redevelopment Authority | ☐ Election Commission |
| ☐ Cadillac Area Council for the Arts | ☐ Housing Commission |
| ☐ Cadillac-Wexford Transit Authority | ☐ Local Development Finance Authority |
| ☐ Cadillac West Corridor Improvement Authority | ☐ Planning Commission |
| ☐ Cemetery Board | ☐ Retirement Board to Administer Act 345 |
| ☐ Civil Service Commission | ☐ Zoning Board of Appeals |
| ☐ Clam River Greenway Committee | ☐ Construction Board of Appeals |
| ☐ Historic Districts Commission | ☐ City of Cadillac/Clam Lake Joint Planning Commission |
| ☐ Diggins Hill Tennis Court Fundraising Committee | |
| ☒ Downtown Development Authority | ☐ Other _____ |

Please print or type:

Name Tyi Schippers

Address

[REDACTED]

Telephone: Home

cell

[REDACTED]

Business/cell

E-mail

[REDACTED]

Date available for appointment

January 2026

Please complete the following. You may use additional sheets as needed.

Community Service

List boards, commissions, committees or community service organizations that you are currently serving or have served upon, offices held, and in what municipality or county.

Cadillac City Council 2010-2025
Mayor " 2/25-12/25
Chair Oasis FRC Board of Directors 2021-present
Wexford County Progressives Founder 2014
President Pine River Education Association 2013-19
President Gopherwood Concerts (decades)
Leader Cadillac United

Employment and Education

List any employment experience or education that, in your opinion, best qualifies you for this appointment. List job titles, duties (current and past), level of education and any certificates or degrees you have obtained.

I have a BA from MSU in education
40 year educator
16 years on City Council
Community Organizer

Have you ever worked for the City of Cadillac? ☐ Yes ☒ No

If yes, please list dates and names of departments.

other than holding elected office

Why do you have interest in serving on this board/commission/committee?

I feel a strong commitment to Cadillac and the DDA.
There are so many projects and possibilities in
the works that I would love to help implement.
A strong, inviting downtown demonstrates a thriving
community. I love to see us thriving.
I think my institutional memory after serving 16
years on council may come in handy. I also see this
as a way to continue to serve my community.

Personal

Rules of law and ethics prohibit appointees from participating in and voting on matters in which they may have a direct or indirect financial interest. Are you aware of any potential conflicts of interest? ☐ Yes ☒ No

If yes, please indicate potential conflicts.

Are you aware of the time commitment necessary to serve on the committee, board and/or commission to which you seek appointment, and will you have such time? ☒ Yes ☐ No

Please provide information about specific training, education, experience or interests you possess that qualify you as an appointee to the position you seek.

Citizen Planner training in 2008
Continued Elected Officials training via MML
Attendance in Cool Cities and other downtown related
sessions at MML conventions,
Online webinars for complete streets

I hereby certify that the preceding information is correct to the best of my knowledge.

Signature

Travis Schipper

Date

6 January 2026

You are invited to attach additional pages, enclose a copy of your résumé or submit supplemental information that you feel may assist in the evaluation of your application.

Mail or return your completed application to:

Marcus Peccia, City Manager
City of Cadillac
200 N. Lake St.
Cadillac MI 49601

Thank you for giving us the opportunity to consider you for appointment.

January 20, 2026

COUNCIL COMMUNICATION

Re: Maple Hill Cemetery Board Recommendations

On October 28, 2025, the Maple Hill Cemetery Board met and would like to add additional language to the Maple Hill Cemetery Rules. Also, after reviewing the current rates the board is recommending the following changes, due to increased costs. The last rate increase occurred in 2021.

Additional Language:

“All foundations must exceed the base of the monument by a minimum of 2 inches on each side.”

To adjust fees as follows:

<u>Summer Rates (April 15 – October 31)</u>	<u>Old Rate</u>	<u>New Rate</u>
Traditional - Resident (Saturday)	\$750	\$1150
Traditional - Non-Resident (Saturday)	\$950	\$1350
 Cremains – Resident (M-F)	 \$250	 \$ 350
Cremains – Non-Resident (M-F)	\$300	\$ 400
Cremains – Resident (Saturday)	\$300	\$ 400
Cremains – Non-Resident (Saturday)	\$350	\$ 450

Foundations – Including Flush Mount Placements	\$	.45 sq in	\$	.50 sq in
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Recommended Action

Council is asked to approve the recommendation of the Maple Hill Cemetery Board to adjust the cemetery rates.

Saginaw –

- Sundays and City recognized holidays – Service not offered
- Monday – Friday - \$1,000 for adults
- Monday – Friday - \$350-325 for children/ infants
- Monday – Friday burial after 3:00 PM \$200 per hour
- Saturday burial before 12 PM \$400 additional charge
- Saturday burial after 12 PM \$200 per hour

Big Rapids Township –

- Summer cremains - \$200 weekdays, \$250 for Saturday, Sunday/holiday \$350
- Winter cremains - \$400 Monday – Friday, \$500 for Saturday
- Full summer burial - \$650 weekdays, \$700 Saturday, Sunday/holiday \$850
- Full winter burials - \$1000 weekdays, \$1050 Saturday
- Infant summer burials - \$300 weekdays, \$350 Saturday, Sunday/holiday \$400
- Infant winter burials - \$450 weekdays, \$500 Saturday

City of Niles –

- Sunday and holidays - \$1,000 – none scheduled after 11 AM
- Saturday and holidays – additional \$600 – none scheduled after 11 AM
- Burial grave O/C - \$900-700, depending on tent or no tent
- Burial cremains - \$350

Petosky –

- Sunday services not offered
- Monday- Friday adult burials \$700
- Saturday adult burials \$1,000
- Holiday adult burial \$1,200
- Cremations Monday- Friday \$350
- Cremations Saturday \$600
- Cremations holiday \$700
- Winter processions are an additional \$350 on top of other charges
- Infant Monday- Friday \$100 / Saturday or holidays are \$250

City of Bay City –

- Adult opening/closing \$650
- Infant opening/closing \$220
- Child opening/closing \$300
- Cremains opening/closing \$270
- Additional charges – weekdays after 3 PM \$200
- Additional charges – Saturdays before noon \$250
- Additional charges – Saturdays after noon \$50 pr hour
- Additional charges – holidays \$350

Midland –

- Resident lot fee \$525, non-resident lot fee \$785
- Adult burial \$485
- Child burial \$345
- Infant burial \$220
- Weekdays after 4 PM an additional \$90
- Saturday (added to burial cost) \$345
- No holiday information

Allendale Township –

- Resident grave site \$500, non-resident \$2,000
- Grave opening/closing \$700
- Grave opening/closing for infant \$300
- Cremation grave opening/closing \$300
- Saturday burials \$500
- Winter burials \$200

January 20, 2026

Council Communication

Re: Early Voting Agreement

Following the adoption of Proposal 2022-2, the Michigan Constitution requires each municipality to have at least one early voting site for statewide and federal elections. On September 18, 2023 City Council authorized the City Clerk to execute an agreement with Wexford County to conduct early voting for two calendar years, beginning January 1, 2024 through December 31, 2025.

Wexford County has provided a new agreement to facilitate early voting for two additional calendar years, beginning January 1, 2026 through December 31, 2027.

One of the primary revisions to the agreement is that the early voting location will change from the Wexford County Lake Street facility to the Wexford County Civic Arena.

Recommended Action

It is recommended that City Council authorize the City Clerk to execute an agreement with Wexford County to conduct early voting for two calendar years, beginning January 1, 2026 through December 31, 2027.

CADILLAC HOUSING COMMISSION
RESOLUTION #704
Employee Wage Increase (amended)

Commission Members Present: Commissioner Frost
Commissioner VanHouten
Commissioner Coffey
Commissioner Iehl

Commission Members Absent: None

The following resolution was offered by Commissioner Iehl and supported by Commissioner VanHouten.

BE IT RESOLVED, by the Cadillac Housing Commission that:

WHEREAS, the Executive Director, Carrie VanderMolen, researched 2026 employee wage increase data and,

WHEREAS, the Personnel Committee discussed and approved a 3% annual cost of living pay increase for the following CHC employees starting January 1, 2026:

Carrie VanderMolen
Patrick Smrekar
Scott Howell
Charlene Mercer
Jeff Wheeler

**(Debbie Gratton received a large pay increase with a promotion in 2025 and Lana Aldrich is a new employee)*

In addition, Carrie VanderMolen and Scott Howell will each be awarded an additional week of vacation for work above and beyond in 2025.

BE IT RESOLVED that the Commission approves of the information presented above.

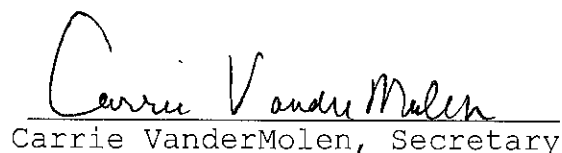
AYES: Commissioner Frost, VanHouten, Iehl and Coffey

NAYS: None

ABSENT: None

RESOLUTION DECLARED ADOPTED ON NOVEMBER 17, 2025, by President Coffey.


Judy Coffey, President


Carrie VanderMolen, Secretary

January 20, 2026

Council Communication

Re: Bids and Recommendation – Tree Removal Services

The City of Cadillac received an Urban and Community Forestry grant from the Michigan Department of Natural Resources. A portion of the grant funds are for the removal of dead, dying, diseased, or dangerous trees in the Kenwood Park area. Bids were solicited for tree removal services and 15 bids were received, including:

Contractor	Bid
Joe's Tree Service Lake City, MI	\$19,818
Holtlander and Sons Tree Service LLC Fenton, MI	\$21,499
Have Saw Will Travel Cadillac, MI	\$28,235
Five Star Tree Service LLC Ludington, MI	\$29,250
4 Little Acres Tree Service Avoca, MI	\$29,600
Hales Professional Tree Service MI	\$29,900
Arbor Masters Shawnee, KS	\$36,036
J Ranck Electric, Inc. Mt. Pleasant, MI	\$39,250
The Bucking Arborists, LLC Flint, MI	\$39,397
Nate O'Grady Landscape & Tree Service Indian River, MI	\$39,625
Advanced Tree Experts, Inc. Riley, MI	\$42,125
Treeworks, Inc. Coopersville, MI	\$45,625
JP's Tree Service LLC Pontiac, MI	\$57,775
Olds Tree Service Buckley, MI	\$78,520
Frontline Maintenance & Services LLC Delton, MI	\$83,250

Council Communication – Tree Removal Services

Page 2

Recommended Action

It is recommended that tree removal services project be awarded to Joe's Tree Service for \$19,818. Funds are available in the General Fund and will be reimbursed by grant funds.

January 20, 2026

Council Communication

Re: Bids and Recommendation – Compact Tractor Purchase

The City recently received bids for the purchase of a compact tractor for the Water Department. This tractor will be used primarily to maintain the grounds at the water department headquarters and to move dirt, snow, and various inventory and parts around the facility. Nine vendors returned completed bid forms with the following bids:

Vendor	Bid
MidMichigan Snow and Landscape Stanton, MI	\$20,703.00
Hutson Inc. Portland, MI	\$22,170.70
Ellens Equipment McBain, MI	\$22,316.21
Burnips Equipment Big Rapids, MI	\$22,463.75
Hutson Inc. McBain, MI	\$23,457.44
Nassau Trading, Inc. Woodside, New York	\$24,175.00
Ebels Hardware Falmouth, MI	\$24,752.00
Outdoor Equipment Co. Ray, MI	\$25,758.00
Technology International Lake Mary, FL	\$38,150.00

The two lowest bids did not fully meet the required specifications related to fuel capacity and loader lift requirements. The recommended vendor is the lowest bid meeting all specifications.

Recommended Action

It is recommended that the purchase of a 2025 Bobcat CT2025 compact tractor be awarded to Ellens Equipment in the amount of \$22,316.21. Funds are available in the Water and Sewer Fund.

January 20, 2026

Council Communication

Re: Bids and Recommendation - Fire Department Portable Radio Purchase

The Cadillac Fire Department was awarded a \$202,000 grant through the Department of Homeland Security's Assistance to Firefighters Grant Program for the purchase of fire service portable radios and accessories. The grant has a maximum award of \$192,380.95 with a required local match of \$9,619.05 (5%). An invitation to bid was issued on December 19, 2025, and bids were opened and reviewed on January 13, 2026. Three bids were received.

Vendor	Bid
AMK Services LLC Fishers, IN	\$167,314.00
Radio North, LLC Traverse City, MI	\$201,208.80
Motorola Solutions – Tele-Rad Holland, MI	\$192,380.00

The Fire Department is recommending the purchase be awarded to AMK Services as the lowest bidder and the preferred product. Because the bid amount is well under the grant budget, the Fire Department has received approval from the AFG program to acquire additional consumable accessories covered under the grant award up to \$10,000.

Recommended Action

It is recommended that City Council award the purchase of portable radios to AMK Services for \$167,314 and include up to an additional \$10,000 in approved accessories from AMK Services. Total expenditures will not exceed the Federal award of \$202,000. Funds are available in the General Fund.

January 20, 2026

Council Communication

Re: Recommendation Regarding Approval of entering into an agreement with the DDA for management of the Cadillac Commons

The purpose of this agreement is to formalize the Downtown Development Authority (DDA) as the entity responsible for management, scheduling, marketing, and administration of the Cadillac Commons, including managing street closures and parking. The City retains responsibility for general maintenance and infrastructure.

This Agreement applies to all areas of the Cadillac Commons, including but not limited to:

- White Pine Trailhead at Cadillac Commons
- Rotary Performing Arts Pavilion at Cadillac Commons
- The Plaza at Cadillac Commons
- City Park at Cadillac Commons
- The Market at Cadillac Commons

Managing these spaces effectively has been a long-standing DDA goal. With the addition of a full-time Director, the DDA now has the capacity and experience to support the City by taking on this role. To date, the DDA has invested over \$1 million in the Cadillac Commons improvements, a clear sign of their long-term commitment to vibrant community space in the downtown district. Proceeds earned from managing the Cadillac Commons will be reinvested directly in Downtown Cadillac.

Cadillac Commons is an important community gathering place that reflects our city's identity. The DDA's goal is to manage Cadillac Commons responsibly, equitably, and sustainably, ensuring that every dollar earned goes back into Downtown Cadillac to support continued growth and community benefit.

The DDA Board approved the management agreement at their regular meeting held Wednesday, December 3, 2025.

Recommended Action

It is recommended that City Council consider the approval of the Agreement with the DDA.

CITY OF CADILLAC AND CADILLAC DOWNTOWN DEVELOPMENT AUTHORITY (DDA) MANAGEMENT AGREEMENT

This Agreement is entered into this ___ day of _____, 2026, by and between the CITY OF CADILLAC (hereinafter referred to as the “City”) and the CADILLAC DOWNTOWN DEVELOPMENT AUTHORITY (hereinafter referred to as the “DDA”).

1. PURPOSE

The purpose of this Agreement is to formalize the working relationship between the City and the DDA for the management and operation of the Cadillac Commons facilities, as well as the street and parking closures identified in Appendix A. This Agreement establishes the DDA as the entity responsible for management, scheduling, marketing, and administration of the Commons, including managing street closures and parking. The City retains responsibility for general maintenance and infrastructure.

2. FACILITIES COVERED

This Agreement applies to all areas of the Cadillac Commons, including but not limited to:

- Cadillac Commons
- White Pine Trailhead
- Rotary Pavilion
- The Plaza
- City Park
- The Market

3. ROLES AND RESPONSIBILITIES

A. DDA RESPONSIBILITIES

The DDA will:

1. Manage the scheduling, administration, and oversight of all facility rentals, events, and activities within the Cadillac Commons.
2. Maintain a public calendar of events and coordinate with the relevant City departments as necessary.
3. Market and promote the Cadillac Commons facilities and events to the public, businesses, and community groups.
4. Provide administrative support related to event applications, rental agreements, permits, and communications.
5. Establish and collect rental fees and deposits for facility use in accordance with rate tables provided in the reservation policy and approved by the DDA Board.

6. Retain rental revenue and event-related income to support operational and programming expenses.
7. Maintain accurate and complete records of all activities related to the Cadillac Commons, including, but not limited to, rental revenue and other income, events and attendance, and operational and programming expenditures. These records shall be reported as outlined in Section 6 of this Agreement.
8. Coordinate with the City on maintenance schedules, public safety concerns, or any operational needs impacting City services.
9. Provide reimbursement to the City for services at the Cadillac Commons in accordance with the annual service fee established by mutual agreement. This fee shall be calculated as twenty percent (20%) of annual revenue, subject to periodic review and adjustment.

B. CITY RESPONSIBILITIES

The City will:

10. Provide general maintenance of the Cadillac Commons facilities, including lawn care, landscaping, snow removal, restroom cleaning and supplies, trash collection and disposal, parking lot and sidewalk maintenance, and repairs to City-owned infrastructure (lighting, paving, electrical, etc.).
11. Ensure public restrooms, parking, and surrounding public spaces are maintained to a clean and safe standard.
12. Coordinate with DDA staff for special maintenance requests associated with scheduled events.
13. Maintain applicable liability and property insurance coverage for all City-owned assets.

4. PAYMENT FOR MAINTENANCE SERVICES

The DDA shall reimburse the City for maintenance services provided at the Cadillac Commons based on an annual service fee established by this Agreement. The initial fee shall be calculated as twenty percent (20%) of annual rental revenue; however, this amount may be reviewed and adjusted periodically to reflect actual service costs. Payment shall be made by the DDA to the City within thirty (30) days of invoice.

5. TERM AND TERMINATION

This Agreement shall take effect on _____, 2026, and shall remain in force for a period of 10 years unless terminated earlier by the mutual written agreement of both parties. Upon termination, the DDA shall pay the City for any services rendered up to the effective date of termination. The Agreement may be renewed by the written agreement of the parties.

6. REPORTING AND REVIEW

The DDA shall provide the City Manager with an annual report summarizing the number and type of events held, total rental revenue collected, marketing and

programming activities, and maintenance or facility improvement recommendations. Both parties shall meet annually to review performance.

7. ENTIRE AGREEMENT AND AMENDMENTS

This Agreement constitutes the entire understanding between the parties with respect to the subject matter herein and supersedes all prior agreements, ordinances, or policies. No amendment or modification of this Agreement is valid unless in writing and signed by both parties and approved by the City Council and DDA Board.

8. GOVERNING LAW

Michigan law governs this Agreement. Any disputes arising under this Agreement shall have proper venue in Wexford County, Michigan.

9. SEVERABILITY

If any provision of this Agreement is determined by a court of competent jurisdiction to be invalid or unenforceable, the remaining parties shall remain in full force and effect.

10. SIGNATURES

CITY _____ OF _____ CADILLAC
By: _____
Name: _____
Title: _____
Date: _____

CADILLAC DOWNTOWN DEVELOPMENT AUTHORITY

By: _____

Name: _____

Title: _____

Date: _____

APPENDIX A – Cadillac Commons Map



January 20, 2026

Draft Council Communication

Re: City Manager Adjustment

Introduction

November 2, 2025, marked my sixteenth year as City Manager. During my tenure, I have led our organization through a myriad of projects, opportunities, and challenges including a global pandemic, all with a very lean team especially since the vacation of the Assistant City Manager position in April 2010.

This memorandum includes an analysis of my current base salary against comparable Michigan municipalities, as detailed in Exhibit A. The analysis demonstrates and focuses on a significant compensation gap between my current salary and the regional market average, including communities that comprise the Big North Conference. This document also outlines a selection of major accomplishments (highlights) over the years that were achieved through strong leadership, responsible fiscal management, successful pursuit of outside funding, and collaboration.

When looking at the totality of the circumstances, such as my tenure in the position, significant compensation gap, and significant accomplishments, I believe my request for a compensation adjustment to bring me and my position up to average to align with regional standards, while also reflecting the complex scope of the position, and providing the ability to retain and attract high-caliber executive leadership and staff for the City, is warranted.

Highlights

Examples of accomplishments that have positively influenced the overall quality of life for those that call Cadillac home, for those that work here, and for those that visit, include but are not limited to:

- Provide leadership and created an environment welcoming for new investment, re-investment, and public/private partnerships.
- Honored and awarded the Michigan Municipal League's Community Builder Award for leadership in these efforts:
 - o Cadillac Commons: Led the creation of the development of [Cadillac Commons](#), a transformational downtown placemaking initiative including:
 - The reconstruction of the Rotary Performing Arts Pavilion into The Rotary Performing Arts Pavilion at Cadillac Commons
 - Reconfiguring a blighted parking lot into The Plaza at Cadillac Commons
 - Construction of The Market at Cadillac Commons

- Since the award, the Trailhead at Cadillac Commons was constructed, and through outside funding, invested over \$800,000 improving The Market at Cadillac Commons
- Honored and awarded the Community Cornerstone Award for Housing Leadership by Networks Northwest
- Honored and awarded the Region 6 Community Excellence Award by the Michigan Municipal League
- Facilitated the securing of millions of dollars of outside funding. Exhibit B approximates dollars requested and received, with over \$20 million in about a 10-year timeframe. The chart includes the most recent \$8.2 million award for extending our water system and connecting properties to it that are on private wells, without any personal expenses.
- Created, with City Council, a framework for our mission, vision, and goals, and annually facilitate the strategic planning sessions.
- Implemented a comprehensive and organized response to the unprecedented COVID-19 global pandemic that ensured the continuity of public services.
- Collaboration with multiple agencies to improve the economic vitality and quality of life include but is not limited to:
 - o State agencies such as the Michigan Economic Development Corporation, Michigan State Housing Development Association, Michigan State Historic Preservation Office, Michigan Department of Transportation, Michigan Department of Environment, Great Lakes, and Energy, Michigan Department of Natural Resources, Michigan District #10 Health Department, and the Michigan PFAS Action Team
 - o Local/Regional agencies, other than City agencies include Housing North, Networks Northwest (served on various committees), Cadillac Area Chamber of Commerce (serve on Committee), Cadillac Area Visitors Bureau, Alliance for Economic Success, Cadillac Area Community Foundation, Cadillac Rotary Club (club member), Cadillac Industrial & Downtown Fund organizations (non-voting member), and Up North Arts
 - o Foundations (Fry, Consumers, and DTE)
 - o Michigan Municipal League (Served on their board as a trustee & current serve on committee)
- Redevelopment Ready Certification (RRC) - Cadillac was awarded the Redevelopment Ready Communities (RRC) Certification from the Michigan Economic Development Corporation.

(MEDC) in 2021. This certification signals that Cadillac has established a solid, transparent, and efficient foundation to attract private investment and be more competitive in economic development, which was the result of considerable time and resources dedicated to over four-years. Currently focusing on being 2.0 certified, which will be possible once our Zoning Code and Master Plan are updated.

- Advocate and City representative for significant development projects across the spectrum including residential, commercial, industrial, and mixed-use. Examples include several industries, such as the two boat companies, rubber companies, and others that have resulted in retention, job growth and new investment in the City. Additional, non-industrial examples include:
 - o Commercial
 - Cobbs & Mitchell
 - Dollar General
 - Lakeside Ace Hardware
 - Raven Social
 - o Mixed-Use
 - Cadillac Lofts Phase 1 & 2 (Phase 1 built, Phase 2 underway)
 - o Residential
 - Cooley School (construction ready)
 - Copper Trails Duplexes (construction ready)
 - Lakelynn Apartments (construction ready)
 - Lake Street Flats (construction underway)
 - Approximately 400 new units (or more) when all mixed-use & residential is constructed
- Improved Code Enforcement – redesigned structure resulting in more blight removal and attention to various code enforcement infractions ranging from tall grass to blighted properties, to short term rentals.
- Facilitated a team to address PFAS that led to the development of a PFAS Management Plan. Lobbied and testified in Lansing, as well as to our federal representatives for outside funding to provide resources to connect the approximately 220 private residential wells to the PFAS free municipal system.
- Secured State funding, after several years of lobbying and working with area stakeholders, valued over \$2 million to resolve a failed, private infrastructure situation that could create a significant public problem if not mitigated.
- Developed a plan in collaboration with Networks Northwest, CAPS, and the MEDC for the redevelopment of the former Cooley and McKinley School sites.
- Served on a “Fix the Roads” statewide committee composed of City and Township executive leadership to help provide “Lansing” with concepts for consideration to improve funding for roads.
- Restructured DDA Director position with DDA as we embark on becoming a fully certified Main Street Community. Currently, I have the new DDA Director/Main Street Program Manager on-board and working towards those efforts in collaboration with my office, the DDA, and other agencies.

- Implemented a comprehensive and organized municipal response to the unprecedented COVID-19 outbreak that ensured the continuity of public services.

These highlights are not inclusive of all activities, but rather are examples of high performance in major areas of importance that contribute to the City's financial stability and quality of life.

Compensation Analysis

Currently, the City is nearly halfway through Fiscal Year 2026 and has provided all employees with annual wage increases over the last several years. The City Manager's base salary of \$120,249.23 has not been adjusted since Fiscal Year 2023 and has fallen significantly below average. The following snippet is from Exhibit A and it shows the analysis of salary data in five ways, in addition to what the average compensation gap is between all five analyses. For reference, the average compensation gap is \$22,635.23, which equals a difference of approximately 18.82%.

City Manager/Administrator Base Salary Comparison - As of 1/9/26

EXHIBIT A - Analysis Summary

Data is from the 2024 & 2025 MML Salary Survey, GovSalaries.com, and 9 & 10 News as Noted

Current Cadillac Base is: \$120,249.23	
Compensation Gap is \$22,635.23 or Approximately 18.82% Below Average	
Data Analysis #1 - Average Base for Big North Conference Communities is:	\$149,347.77
Difference or Gap Between Cadillac Current & Big North Conference Average is:	\$29,098.54
Percentage Difference:	24.20%
Data Analysis #2 - Average Base for Big North Conference/Regional is:	\$145,741.27
Difference or Gap Between Cadillac Current & Big North Conference/Regional Average is:	\$25,492.04
Percentage Difference:	21.20%
Data Analysis #3 - Average of Full Data List is:	\$142,135.70
Difference or Gap Between Cadillac & Full Data List Average is:	\$21,886.47
Percentage Difference:	18.20%
Data Analysis #4 - Average Base for Communities Between 7,000 & 13,000 is:	\$139,844.28
Difference or Gap Between Cadillac & Average for Communities Between 7,000 & 13,000 is:	\$19,595.05
Percentage Difference:	16.30%
Data Analysis #5 - Average Base for Communities Between 9,500 & 11,500 is:	\$137,353.27
Difference or Gap Between Cadillac & Average for Communities Between 9,500 & 11,500 is:	\$17,104.04
Percentage Difference:	14.22%

Request for Consideration

In recognition of my tenure of over 16-years serving the community, significant achievements, significant compensation gap, and lack of any adjustment over several fiscal years, it is my request for Council to affirmatively consider adjusting the annual base salary by one of the five ways shown in Exhibit A, preferably by either Request #1, #2, or #3 (below) along with the following:

- Employment Agreement clarifications:
 - Clarify Paragraph 3, Termination and Severance Pay:
 - Unused earned vacation and sick leave banks would be paid out in full (varies by Union)
 - COBRA is for 12 months (all other employees are 6-months)
 - Should my termination be due to conviction of any felony, my severance, COBRA, and payout of earned vacation and sick time are forfeited.
 - Update Paragraph 5, Salary, to the adjust my base to the amount equal to the average of the Big North Conference Communities as shown under Data Analysis #1.
 - Clarify Paragraph 6, Performance Evaluation, that Council may annually review and evaluate my performance in Closed Session in accordance with the Open Meetings Act.
- Salary Adjustment:
 - Effective on the date approved by City Council
 - Not retroactive
 - Not phased-in overtime.
 - Adjustment preference is in order of how the data summary is presented under Exhibit A, and in summary, my request for adjustment is prioritized within the top three:
 - Request #1: Adjusted 24.20% to become average with compensation of the communities that comprise the Big North Conference (Data Analysis #1); or
 - Request #2: Adjusted 21.20% to become average with compensation of the communities that comprise the Big North Conference/Regional Average (Data Analysis #2); or
 - Request #3: Adjusted 18.82% to become average with the average compensation of all five analyses shown under Exhibit A

Recommended Action

Consider approval of the requests, direct the City Attorney to document changes in an Eleventh Amendment to the Employment Agreement, and authorize the Mayor to execute the agreement once approved to form by the City Attorney.

A handwritten signature in black ink, appearing to read 'Ma Peccia', with a long horizontal flourish extending to the right.

Marcus Peccia, City Manager

City Manager/Administrator Base Salary Comparison - As of 1/9/26

EXHIBIT A - Analysis Summary

Data is from the 2024 & 2025 MML Salary Survey, GovSalaries.com, and 9 & 10 News as Noted

Current Cadillac Base is: \$120,249.23

Compensation Gap is \$22,635.23 or Approximately 18.82% Below Average

Data Analysis #1 - Average Base for Big North Conference Communities is: \$149,347.77

Difference or Gap Between Cadillac Current & Big North Conference Average is: \$29,098.54
Percentage Difference: 24.20%

Data Analysis #2 - Average Base for Big North Conference/Regional is: \$145,741.27

Difference or Gap Between Cadillac Current & Big North Conference/Regional Average is: \$25,492.04
Percentage Difference: 21.20%

Data Analysis #3 - Average of Full Data List is: \$142,135.70

Difference or Gap Between Cadillac & Full Data List Average is: \$21,886.47
Percentage Difference: 18.20%

Data Analysis #4 - Average Base for Communities Beteen 7,000 & 13,000 is: \$139,844.28

Difference or Gap Between Cadillac & Average for Communities Between 7,000 & 13,000 is: \$19,595.05
Percentage Difference: 16.30%

Data Analysis #5 - Average Base for Communities Between 9,500 & 11,500 is: \$137,353.27

Difference or Gap Between Cadillac & Average for Communities Between 9,500 & 11,500 is: \$17,104.04
Percentage Difference: 14.22%

City Manager/Administrator Base Salary Comparison - As of 1/9/26

Data Charts of Top Two

Big North Conference Analysis

Alpena**	\$134,242
Escanaba	\$154,794
Gaylord	\$129,825
Marquette	\$137,891
Petoskey	\$167,690
Sault Ste. Marie	\$118,156
Traverse City****	\$202,837
Average:	\$149,348

Big North Conference/Regional Analysis

Alpena**	\$134,242
Big Rapids	\$140,774
Boyne City**	\$138,932
Charlevoix	\$170,957
Elk Rapids*	\$147,514
Escanaba	\$154,794
Fremont	\$132,945
Gaylord	\$129,825
Ionia	\$145,309
Manistee	\$116,238
Marquette	\$137,891
Mt. Pleasant	\$148,016
Petoskey	\$167,690
Sault Ste. Marie	\$118,156
Traverse City****	\$202,837
Average:	\$145,741

All Data

Community	Population	Base Salary
Elk Rapids*	1,529	\$147,514
Charlevoix**	2,347	\$170,957
Boyne City**	3,821	\$138,932
Gaylord	4,286	\$129,825
Fremont	4,516	\$132,945
Saint Clair	5,464	\$120,000
Chelsea	5,467	\$150,000
Zeeland	5,719	\$181,813
Dowagiac*	5,721	\$147,000
Petoskey	5,877	\$167,690
Belding*	5,938	\$105,040
Milan*	6,079	\$105,000
Northville	6,119	\$181,230
Ishpeming*	6,140	\$102,000
Rockford	6,142	\$140,218
Manistee**	6,259	\$116,238
Huntington Woods**	6,388	\$135,264
Milford*	6,520	\$128,000
Marshall*	6,822	\$151,178

Community	Population	Base Salary
Highland Park*	8,977	\$95,000
Lapeer	9,023	\$134,742
Charlotte*	9,299	\$140,000
Ecorse**	9,305	\$130,000
Plymouth	9,370	\$184,746
Alma	9,488	\$132,410
Marysville*	9,997	\$140,608
Howell	10,068	\$133,000
Alpena**	10,197	\$134,242
Cadillac***	10,371	\$120,250
Grand Haven*	11,011	\$135,207
Sturgis*	11,082	\$132,612
East Grand Rapids*	11,371	\$153,192
Clawson*	11,389	\$132,612
Grosse Pointe Park*	11,595	\$120,000
South Lyon	11,746	\$120,567
Niles*	11,988	\$142,958
Fenton	12,050	\$155,000
Escanaba	12,450	\$154,794

City Manager/Administrator Base Salary Comparison - As of 1/9/26

Saint Louis*	7,010	\$102,396	Riverview	12,490	\$138,848
Walled Lake*	7,250	\$201,104	Melvindale	12,851	\$180,000
Brighton*	7,446	\$142,892	Woodhaven*	12,941	\$124,316
Hudsonville*	7,629	\$122,880	Sault Sainte Marie	13,337	\$118,156
Ludington*	7,655	\$114,552	Ionia	13,378	\$145,309
Saint Johns*	7,698	\$147,000	Coldwater	13,822	\$150,380
Albion*	7,700	\$111,450	Owosso	14,714	\$133,634
Big Rapids	7,727	\$140,774	Fraser*	14,726	\$123,000
Grand Ledge*	7,784	\$163,013	Southfield Township*	14,886	\$260,000
Saint Joseph*	7,856	\$157,590	Hazel Park*	14,983	\$173,243
Hillsdale	8,036	\$211,916	Berkley*	15,194	\$150,000
Mason	8,283	\$140,906	Harper Woods*	15,492	\$113,792
Houghton	8,386	\$145,900	Traverse City***	15,678	\$202,837
Flushing**	8,411	\$98,000	Grandville	16,083	\$150,000
Menominee	8,488	\$128,107	Grosse Pointe Woods*	16,487	\$133,133
Center Line	8,552	\$111,120	Wixom	17,193	\$145,000
Tecumseh*	8,680	\$117,107	Wayne	17,713	\$130,410
Greenville	8,816	\$168,539	Trenton*	18,544	\$130,491
Saline**	8,948	\$153,671	Ferndale*	19,190	\$154,542
			Marquette	20,629	\$137,891
			Mount Pleasant	21,688	\$148,016

*2024 MML Salary Survey Data Source

**GovSalaries.com 2024 Data Source

***No Adjustment in 2-Fiscal Years

***9 & 10 News Data Source

Overall Average from Full List is: \$142,136

Exhibit B

CITY OF CADILLAC OUTSIDE FUNDING SOURCES	Funding Source	REQUESTED	REQUESTED	REQUESTED	REQUESTED	REQUESTED (COVID Year)	REQUESTED	REQUESTED	REQUESTED	REQUESTED	REQUESTED	RECEIVED	
		2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	Total's	
Rotary Performing Arts Pavilion \$50,000 MEDC	MEDC MI Econ Dev & Patronicity Crowdfunding	\$122,000										\$ 122,000.00	
Cadillac Commons Market Pavilion \$50,000	MEDC MI Econ Dev & Patronicity Crowdfunding	\$112,000										\$ 112,000.00	
Potvin Industrial Park road extension	MEDC						\$100,000					\$ 100,000.00	
Cadillac Lofts Brownfield	MDEQ				\$250,000							\$ 250,000.00	
Mitchell Bentley site Brownfield	MDEQ				\$700,000							\$ 700,000.00	
CACF & Rotary grants for Commons bike racks	CACF & Rotary for Dist 6290 Rotary matching					\$2,500						\$ 2,500.00	
Cadillac Lofts Community Block Grant	MEDC MI Eeonomic Dev Corp				\$831,864							\$ 831,864.00	
Community Prosperity Grant	Consumers Energy Foundation						\$250,000					\$ 250,000.00	
Diggins Hill Revitalization	Rotary Club of Cadillac									\$79,073		\$ 79,072.61	
Diggins Hill Revitalization	Rotary Club of Cadillac										\$38,800	\$ 38,800.00	
Diggins Hill Revitalization	CACF/Potvin/MacLeod/Frier/Cadillac LLC									\$20,700		\$ 20,700.00	
Cyber Security	SOM									\$ 32,400.00		\$ 32,400.00	
Cyber Security	SOM									\$ 17,600.00		\$ 17,600.00	
BEPSLBA Blight Grant	State Land Bank Administration										\$792,255	\$ 792,255.00	
Cadillac Lofts 2 Brownfield Redevelopment Grant	EGLE										\$ 817,925.00	\$ 817,925.00	
Sound Garden	CACF/Kellogg Foundation Youth Grant		\$5,500									\$ 5,500.00	
Sound Garden	Cadillac Garden Club		\$4,000									\$ 4,000.00	
Sound Garden	Michigan Council for Arts & Cultural Affairs		\$8,750									\$ 8,750.00	
Market Renovations	MEDC Public Gathering Spaces								\$750,000			\$ 750,000.00	
Rotary Performing Arts Pavilion & new restroom	Rotary Club of Cadillac	\$160,000										\$ 160,000.00	
Cadillac Commons Plaza	Consumers Energy Foundation	\$50,000										\$ 50,000.00	
Cadillac Commons	Cadillac Area Community Foundation	\$50,000	\$50,000				\$10,000					\$ 110,000.00	
Cadillac Commons	DCA Downtown Cadillac Association	\$2,500	\$2,500									\$ 5,000.00	
Cadillac Commons	Visitors Bureau \$25,000 spread over five years	\$5,000	\$5,000	\$5,000	\$5,000							\$ 20,000.00	
Cadillac Commons	Fry Foundation Market Place		\$25,000									\$ 25,000.00	
Cadillac Commons	Networks Northwest for Plaza Banners		\$9,000									\$ 9,000.00	
Cadillac Commons Ice Rink	CACF/Kellogg Foundation Youth Grant	\$6,000										\$ 6,000.00	
DDA Downtown City Park Infrastructure PlacePlans	Michigan Economic Development Corporation	\$200,000										\$ 200,000.00	
Cadillac Commons Shay Locomotive	Rotary Club of Cadillac						\$10,000					\$ 10,000.00	
Cadillac Commons White Pine Trailhead	MDNR Trust Fund Grant							\$265,000				\$ 265,200.00	
DDA Downtown Hanging Baskets	Busin esses, residents, non-profits		\$5,393	\$5,516								\$ 10,909.00	
Technical Support	MEDC						\$5,000					\$ 5,000.00	
Owl Eye Coffee Match on Main	MEDC Match on Main Street							\$25,000				\$ 25,000.00	
Simply Delightful	MEDC Match on Main Street							\$25,000				\$ 25,000.00	
Charming North	MEDC Match on Main Street								\$25,000			\$ 25,000.00	
The Ice Cream Shop	MEDC Match on Main Street								\$25,000			\$ -	
Walraven	MEDC Match on Main Street									\$25,000		\$ 25,000.00	
Burkes Waterfront Restaurant	MEDC Match on Main Street										\$25,000	\$ -	
Renegade	MEDC Match on Main Street										\$25,000	\$ 25,000.00	
Owl Eye Coffee	MEDC Optimize Main Street								\$2,500			\$ 2,500.00	
Cozy Co.	MEDC Optimize Main Street								\$2,500			\$ 2,500.00	
After 26 Depot	MEDC Optimize Main Street							\$2,500				\$ 2,500.00	
Charming North	MEDC Optimize Main Street							\$2,500				\$ 2,500.00	
Tmobile Community Art	T-Mobile Main Street America										\$50,000		
West Corridor Lighting	T-Mobile Main Street America										\$50,000		
Diggins Hill Sensory Park	MDNR Recreation Passport										\$127,800	\$ 127,800.00	
Diggins Hill Sensory Park	MDNR Trust Fund Grant										\$127,600		
Diggins Hill Park	DTE Energy										\$50,000		
Consumers Foundation Grant	Consumers Foundation										\$ 250,000.00		
Zoning Rewrite	MSHDA HRI									\$39,600			
Blight Grant	MI Land Bank Fast Track Authority	\$79,000										\$ 79,000.00	
Portable Radios	FEMA Assistance to Firefighters	\$59,977										\$ 59,977.00	
Seven AED Defibrulators	Asst. to Firefighters				\$21,000							\$ 21,000.00	
Fire Gear	SOM											\$ 34,827.50	
Portable Radios	Firefighters Grant Program									34,827.50		\$ 240,000.00	\$ 192,380.95
DTE ReLeaf Grant	DTE								\$5,000			\$ 5,000.00	
Community Tree-Planting Grant	Consumers Energy	\$2,500	\$2,500	\$2,500	\$2,500			\$2,500	\$2,500	\$2,800	\$2,800	\$ 2,800.00	
USDA Forest Tree Grant	DTE through MDNR	\$3,000	\$3,000	\$3,000	\$3,000	\$3,000		\$4,000				\$ 19,000.00	
Community Forestry Grant	MDNR Urban Forestry										\$147,000	\$ 90,000.00	
Kenwood Beach/Boat Launch restroom	MDNR Land & Water Conservation Fund Grant			\$80,000								\$ 80,000.00	
Police Resource Officer, School Liason	US Dept of Justice COPS Grant \$125,000 over 4 years	\$31,250	\$31,250									\$ 62,500.00	
Police car AED's (4)	US Homeland Security/Wexford Emergency	\$20,000										\$ 20,000.00	
Police Safety Vests	United States BVP program for police vests		\$5,003									\$ 5,003.00	
Police Academy Grant	SOM									77,777.36		\$ 77,777.36	
STP/SUP West Division St & Cobb St. Improvements	MDOT Administers the program in MI	\$375,000										\$ 375,000.00	
STP/SUP Leeson Ave. Improvements	MDOT Administers the program in MI			\$176,250								\$ 176,250.00	
Shared Streets and Spaces Grant Award	MDOT									\$200,000		\$ 200,000.00	
Cadillac Sewer & Water Development, SAW Grant	MI. Dept. of Environmental Quality \$2,000,000 awarded	\$1,000,000	\$500,000									\$ 1,500,000.00	
Wellhead Protection Grant, Drinking Water	MI. Dept of Environmental Quality Wellhead Protection	\$7,500			\$7,500		\$7,500					\$ 22,500.00	
Amp/Dsmi	MI. Dept of Environment, Great Lakes, & Energy (EGLE)							\$524,056				\$ 524,056.00	
SLBA Blight Elimination Grant	State Land Bank Administration								\$33,374			\$ 33,374.00	
PFAS Mitigation	Congressman Molenaar										\$8,200,000		
PFAS Mitigation	Senator Peters										\$8,200,000		
PFAS Mitigation	Michigan Legislature, Senator Fox										\$8,200,000		
Solar for All Pilot	EGLE										\$3,000,000	RECIINED	
PFAS Assessing and Mitigation	EGLE										\$8,200,000	\$ 8,200,000.00	
Lead and Copper Grant	EGLE										\$406,583	\$ 406,583.00	
Culvert	Senator Slotkin								\$7,000,000			\$ 2,054,300.00	
Cadillac Commons Splashpad	Chamber of Commerce Leadership	\$78,000										\$ 78,000.00	
Cadillac Commons Shay Locomotive	Chamber of Commerce Leadership						\$55,000					\$ 55,000.00	
Cadillac Commons Shay Locomotive	Cadillac Area Community Foundation						\$10,000					\$ 10,000.00	
Cadillac Commons	Cadillac Lions Club	\$2,700										\$ 2,700.00	
Cadillac Common's Trailhead	4 Front Credit Union							\$2,500				\$ 2,500.00	
	Totals:	\$2,366,427	\$656,896	\$272,266	\$1,820,864	\$5,500	\$447,500	\$853,056	\$7,845,874	\$529,777	\$38,950,763	\$ 20,463,804.42	

January 20, 2026

Council Communication

Re: Resolution to Recommend an Ordinance to Amend the Zoning Ordinance to Conditionally Rezone 407 E Chapin St.

The Cadillac Planning Commission voted unanimously at their November 24, 2025, meeting to approve and recommend that Council approve the Conditional rezoning request for 407 E Chapin Street. Property owners, Jennifer and Bryan Haney, are requesting conditional rezoning of 407 E Chapin Street from R-3 to RM-1 on the condition that the subject property be used only as a single-family home or a bed and breakfast, subject to special land use approval.

Recommended Action

Council is asked to consider adopting a resolution to introduce an ordinance to amend the zoning ordinance to conditionally rezone 407 E Chapin Street and to set a public hearing for February 2, 2026.

City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
David C. Powell

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkins

RESOLUTION NO. _____

RESOLUTION TO SET A PUBLIC HEARING AND INTRODUCE ORDINANCE NO. ____

**AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held on
January 20, 2026, at 6:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and
seconded by _____.

WHEREAS, Jennifer and Bryan Haney ("Owner") own real property in the City of
Cadillac legally described as follows:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE VILLAGE OF
CLAM LAKE, CITY OF CADILLAC

and whose tax identification number is 10-086-00-493-00, and commonly known as 407 E.
Chapin Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-3, One-Family Residential; and

WHEREAS, the Owner submitted an application (the "Application") to the City
Planning Commission requesting that the Parcel be rezoned to RM-1, Multiple-Family
Residential, in order to develop and operate a bed and breakfast on the Parcel; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission conducted a public hearing regarding rezoning of the Parcel on November 24, 2025; and

WHEREAS, the City Planning Commission has recommended that the City Council amend the City Zoning Map to rezone the Parcel to RM-1, Multiple-Family Residential; and

WHEREAS, the City Council wishes to conduct a public hearing to hear public comments regarding the Application.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Pursuant to Section 5.2 of the Charter, the City introduces An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property (the "Ordinance," attached as **Exhibit A**).

2. A public hearing regarding the Application shall be held on February 2, 2026, at 6:00 p.m. in the Council Chambers, Cadillac Municipal Complex, 200 N Lake Street, Cadillac, Michigan.

3. The City Clerk is directed to publish a summary of the Ordinance once in a newspaper of general circulation in the City, together with a notice setting the time and place for a public hearing on the Ordinance, within seven (7) days. The summary and notice of the hearing shall be substantially the form of **Exhibit B**.

4. A copy of the Ordinance shall be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. ____, duly adopted at a meeting of the City Council held on the 20th day of January, 2026.

Sandra Wasson
Cadillac City Clerk

EXHIBIT A

ORDINANCE NO. _____

AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE PROPERTY

THE CITY OF CADILLAC ORDAINS:

Section 1. Amending Zoning District Map.

The City hereby amends the City Zoning Map to change the R-3, One-Family Residential District zoning designation and established use district as shown on the City Zoning Map for the real property legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE VILLAGE OF
CLAM LAKE, CITY OF CADILLAC

(Tax identification No. 10-086-00-493-00) (the "Parcel").

to the RM-1, Multiple-Family Residential District zoning designation and corresponding use district under Chapter 46 of the Cadillac City Code.

Section 2. Conditional Approval.

This rezoning is conditionally approved and subject to the use and development conditions established in the Conditional Rezoning Approval Agreement, attached as **Exhibit 1**, which is incorporated herein by reference and which includes the following conditions:

1. The parcel shall only be used for the development and operation of a bed and breakfast or as a one-family detached dwelling.
2. Nothing in this Ordinance shall relieve the Parcel's owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

Section 3. Severability.

Should any portion of this Ordinance be found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of this Ordinance.

Section 4. Repealer.

All other ordinances inconsistent with the provisions of this Ordinance are hereby repealed but only to the extent necessary to give this Ordinance full force and effect; provided, however, that if Section 2 is found invalid, then Section 1 shall no longer be of any force or effect.

Section 5. Effective Date.

This Ordinance shall take effect twenty (20) days after its publication as provided by law.

CONDITIONAL REZONING AGREEMENT

THIS CONDITIONAL REZONING AGREEMENT made this ____ day of _____, 2026, by and between the City of Cadillac ("City"), a Michigan municipal corporation, whose offices are located at 200 N Lake St, Cadillac, MI 49601, and Jennifer and Bryan Haney ("Owner"), the owners of the property that is the subject of this Agreement, whose address is 407 E. Chapin Street, Cadillac, MI 49601.

WHEREAS, Owner submitted an amended application to rezone certain real property ("Property") located in the City of Cadillac, Michigan, legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE
VILLAGE OF CLAM LAKE, CITY OF CADILLAC,

from its current designated as zoning classification R-3, One-Family Residential to RM-1, Multiple-Family Residential District pursuant to the City of Cadillac Zoning Ordinance to develop and operate a bed and breakfast; and

WHEREAS, Owner voluntarily offered, in writing, certain use limits as conditions of the rezoning; and

WHEREAS, pursuant to the Michigan Zoning Enabling Act, PA 110 of 2006, the City may approve rezoning conditions offered by an applicant and may establish a time period during which the conditions apply; and

WHEREAS, on November 24, 2025, the City of Cadillac Planning Commission voted to recommend approval of Owner's request to conditionally rezone the Property and to accept Owner's proposed limitations on the use of the Property as more specifically set forth in this Agreement; and

WHEREAS, on _____ 2026, the City of Cadillac City Council voted to approve Owner's requested conditional rezoning, accept Owner's proposed limitations on the use of the Property, and approve the terms and conditions of this Conditional Rezoning Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the City and Owner agree as follows:

1. Conditional Rezoning

Pursuant to Section 405 of the Michigan Zoning Enabling Act, MCL 125.3405, Owner's agrees to limit the use of the Property as set forth in this Agreement. Upon execution of this Agreement by the parties, the City shall effectuate the conditional rezoning of the Property from zoning classification R-3, One-Family Residential to RM-1 Multiple-Family Residential District.

2. Rezoning Conditions

Owner agrees that the development of the Property will proceed in accordance with the following conditions which have been offered by Owner as a condition of rezoning the Property:

- a) The parcel will only be used for the development and operation of a bed and breakfast or as a one-family detached dwelling.
- b) Nothing in this Ordinance shall relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

3. Future Development.

All development of the Property shall be in strict compliance with all applicable City Ordinances, regulations, and applicable building code and utility requirements.

4. Entire Agreement.

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof, and all prior or contemporaneous agreements or understandings with respect hereto shall be deemed merged into this Agreement.

5. No Oral Amendment or Modification.

No amendments, waivers or modifications hereof shall be made or deemed to have been made unless in writing and executed by the parties.

6. Amendment of Conditions.

During the time period for commencement of an approved development or use specified pursuant to the Zoning Ordinance or during any extension thereof granted by the City Council, the City shall not add to or alter the conditions in this Agreement. This Agreement may be amended thereafter in the same manner as was prescribed for the original rezoning and the Agreement.

7. Severability.

If any provision of this Agreement shall be declared invalid, illegal, or unenforceable by a court of competent jurisdiction, the remainder of this Agreement shall not be affected thereby and this Agreement shall be construed as if those provisions were not contained in this Agreement.

8. Applicable Law.

This Agreement shall be interpreted and enforced according to the laws of the State of Michigan.

9. Recordation.

This Agreement will be filed by the City with the Register of Deeds of Wexford County for recording.

10. Violation and Enforcement.

The failure of any party to complain or enforce any act or omission on the part of another party, no matter how long the same may continue, shall not be deemed to be an acquiescence or waiver by such party of any of its rights hereunder. No waiver by any party at any time, express or implied, or any breach of any provision of this Agreement shall be deemed a waiver of a breach of any other provision of this Agreement or a consent to any subsequent breach of the same or any other provision of this Agreement. If any action by any party shall require the consent or approval of another party, such consent or approval of such action shall not be deemed a consent to or approval of any other provision of this Agreement.

11. Violation of Zoning Ordinance.

Any failure by Owner to comply with the terms and conditions of this Agreement constitutes a violation of the City's Zoning Ordinance, a nuisance per se and subjects Owner to the applicable penalties and remedies provided by law, including, but not limited to, immediate injunctive relief. Notwithstanding any other term or condition of this Agreement to the contrary, if Owner, its successors or assigns fails to comply with the use and development conditions of this Agreement or attempts to use or develop the Property contrary to Owner's offered use and development conditions, the Property conditionally rezoned to RM-1, Multiple-Family Residential District will immediately revert to its former zoning classification R-3 One-Family Residential District and any approval of the site plan for the proposed development shall terminate. In such an event, Owner may thereafter develop the Property only in accordance with a site plan that is approved by the Planning Commission and complies with all City zoning, engineering, building and fire codes, as well as Ordinances in effect at that time.

Nothing in this Agreement will relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

12. Binding Effect; Assignment.

This Agreement runs with the land and binds and insures to the benefit of City and the successors and assigns of Owner.

13. Effective Date.

The conditional rezoning approved by the City Council is effective as provided by law.

14. Time Period for Establishing Development or Use.

The approved development and/or use of the Property authorized by this Agreement must commence within 18 months after the conditional rezoning takes effect and thereafter proceed diligently to completion. Upon written request, this time may be extended by the City Council if (1) it is demonstrated to the City Council 's reasonable satisfaction that there is a strong likelihood that the development and/or use will commence within the period of extension and proceed diligently thereafter to completion and (2) the City Council finds that there has not been a change in circumstances that would render the current zoning with the Agreement incompatible with other zones and uses in the surrounding area or otherwise inconsistent with sound zoning policy.

15. Subsequent Rezoning of Land.

If the Property is rezoned to a different zoning classification or to the same zoning classification but with a different or no agreement, whether as a result of a reversion of zoning pursuant to the Zoning Ordinance or otherwise, this Agreement shall cease to be in effect. Upon Owner's written request, the City Clerk will record with the Register of Deeds of the County in which the land is located a notice that the Agreement is no longer in effect.

16. City Right to Rezone.

Nothing in this Agreement, nor in the provisions of the Zoning Ordinance shall be deemed to prohibit the City from rezoning all or any portion of the Property to another zoning classification. Any rezoning shall be conducted in compliance with the Zoning Ordinance and the Zoning Enabling Act (MCL 125.1301 et seq.)

[SIGNATURE BLOCKS ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have caused this Conditional Rezoning Agreement to be executed effective as of the day and year first above written.

City of Cadillac, a Michigan municipal corporation

By: _____
David C. Powell, Mayor

By: _____
Sandra Wasson, City Clerk

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, 2026, by David C. Powell, its Mayor and Sandra Wasson, its Clerk, on behalf of the City of Cadillac.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Jennifer Haney ("Owner")

Bryan Haney ("Owner")

Jennifer Haney

Bryan Haney

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by Jennifer Haney and Bryan Haney.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Prepared by/Return to:
Mallory E. Reader
Foster, Swift, Collins & Smith, P.C.
1700 East Beltline NE, Suite 200
Grand Rapids, Michigan 49525
(616) 726-2200

EXHIBIT B

NOTICE OF PUBLIC HEARING AND SUMMARY OF PROPOSED ORDINANCE

On January 20, 2026, the City Council of the City of Cadillac introduced Ordinance No. _____, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property.

NOTICE IS HEREBY GIVEN that a Public Hearing on the proposed ordinance will be held in the Council Chambers, Cadillac Municipal Complex, 200 N Lake Street, Cadillac, Michigan, on February 2, 2026, at 6:00 p.m., at a Meeting of the City Council.

The City of Cadillac complies with the "Americans with Disabilities Act." If auxiliary aids or services are required at a public meeting for individuals with disabilities, please contact Sandra Wasson, City Clerk, at least three (3) business days prior to any such meeting. The proposed ordinance is available for examination at the office of the City Clerk, 200 N Lake Street, Cadillac, Michigan, and copies may be provided FOR a reasonable charge. The following is a summary of the proposed ordinance.

SUMMARY OF PROPOSED ORDINANCE NO. _____

Section 1. Map Amendment. Section 1 of the Proposed Ordinance amends the City of Cadillac Zoning Map to change the zoning classification of Parcel No. 10-086-00-493-00 from R-3 to RM-1.

Section 2. Conditional Approval. Section 2 of the Proposed Ordinance provides the rezoning is conditionally approved subject to the conditional rezoning approval agreement, which includes that the property may only be used as a bed and breakfast or single-family dwelling and that the owner is not relieved from any obligations to obtain a special use permit and site plan approval.

Section 3. Severability. Section 3 of the Proposed Ordinance provides that if any portion of the proposed ordinance is found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of the proposed ordinance.

Section 4. Repealer. Section 4 of the Proposed Ordinance repeals all ordinances inconsistent with the provisions of the Ordinance, but only to the extent necessary to give the Ordinance full force and effect.

Section 5. Effective Date. Section 5 of the Proposed Ordinance gives it effect 20 days after adoption.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Sandra Wasson, City Clerk
Cadillac Municipal Complex

200 N Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

City Council
200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
Tiyi Schippers

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkin

**CITY OF CADILLAC
PLANNING COMMISSION
RESOLUTION NO. 2025-03**

**RESOLUTION RECOMMENDING AN ORDINANCE TO AMEND THE ZONING ORDINANCE
TO CONDITIONALLY REZONE PROPERTY**

At a meeting of the Planning Commission of the City of Cadillac, Michigan, held on November 24, 2025, at 6:00 p.m. at the Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

PRESENT: Host, Rice, Bunce, Bosscher, Baumann, Fent, Van Pelt, Patvin

ABSENT: Schippers

The following resolution was offered by Baumann and supported by Van Pelt.

WHEREAS, pursuant to the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City has authority to adopt and amend zoning ordinances establishing zoning districts regulating the use of land in the City; and

WHEREAS, Jennifer and Bryan Haney ("Owner") own real property in the City of Cadillac legally described as follows:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE VILLAGE OF CLAM LAKE, CITY OF CADILLAC

and whose tax identification number is 10-086-00-493-00, and commonly known as 407 E. Chapin Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-3, One-Family Residential; and

WHEREAS, the Owner submitted an application (the "Application") to the City Planning Commission requesting that the Parcel be rezoned to RM-1, Multiple-Family Residential, in order to develop and operate a bed and breakfast on the Parcel; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission held a public hearing regarding rezoning of the Parcel on November 24, 2025; and

WHEREAS, the Planning Commission wishes to recommend that the City Council approve the Application and adopt An Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (the "Ordinance," **Exhibit A**).

NOW, THEREFORE, the Planning Commission of the City of Cadillac resolves as follows:

1. The Planning Commission recommends that the City Council adopt An Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (the "Ordinance," **Exhibit A**).
2. The Planning Commission will forward this Resolution, along with the minutes of the public hearing and any written public comments received, to City Council for its consideration.
3. A copy of the Ordinance will be available for examination at the office of the Clerk, and copies may be provided for a reasonable charge.
4. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

Cadillac Planning Commission

Resolution No. 2025-03

Page 3 of 10

YEAS: 8

NAYS: 0

STATE OF MICHIGAN)

)

COUNTY OF WEXFORD)

I, John Putvin Jr., the Chair of the Planning Commission of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2025-03, duly adopted at a meeting of the Planning Commission held on the 24th day of November, 2025.

By: John Putvin
Print Name: John Putvin
Its: Chair

January 20, 2026

Council Communication

Re: Resolution to Recommend an Ordinance to Amend the Zoning Ordinance to Conditionally Rezone 620 Arthur St

The Cadillac Planning Commission voted unanimously at their December 22, 2025, meeting to approve and recommend that Council approve the Conditional rezoning request for 620 Arthur Street. Property owners, Derek and Emily Hamp, are requesting conditional rezoning of 620 Arthur Street from R-2 to RM-1 on the condition that the subject property be used only as a single-family or a two-family home.

Recommended Action

Council is asked to consider adopting a resolution to introduce an ordinance to amend the zoning ordinance to conditionally rezone 620 Arthur Street and to set a public hearing for February 2, 2026.

City Council
200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
David C. Powell

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkins

RESOLUTION NO. _____

**RESOLUTION TO SET A PUBLIC HEARING AND INTRODUCE ORDINANCE NO. __,
AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held on January 20, 2026, at 6:00 p.m. at the Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, Cadillac Living LLC ("Owner") owns real property in the City of Cadillac legally described as follows:

LOT 12, BLOCK 108, J. CUMMER & SON'S 2ND ADDITION TO CITY OF
CADILLAC, WEXFORD COUNTY, MICHIGAN
and whose tax identification number is 10-058-00-036-00, and commonly known as 620 Arthur Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-2, One-Family Residential; and

WHEREAS, Derek Hamp, on behalf of the Owner, submitted an application (the "Application") to the City Planning Commission requesting that the Parcel be rezoned to RM-1, Multiple-Family Residential, in order to use the Parcel for a two-family dwelling; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission conducted a public hearing regarding rezoning of the Parcel on December 22, 2025; and

WHEREAS, the City Planning Commission has recommended that the City Council amend the City Zoning Map to rezone the Parcel to RM-1, Multiple-Family Residential; and

WHEREAS, the City Council wishes to conduct a public hearing to hear public comments regarding the Application.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Pursuant to Section 5.2 of the Charter, the City introduces An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property (the "Ordinance," attached as **Exhibit A**).

2. A public hearing regarding the Application shall be held on February 2, 2026, at 6:00 p.m. in the Council Chambers, Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

3. The City Clerk is directed to publish a summary of the Ordinance once in a newspaper of general circulation in the City, together with a notice setting the time and place for a public hearing on the Ordinance, within seven (7) days. The summary and notice of the hearing shall be substantially the form of **Exhibit B**.

4. A copy of the Ordinance shall be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. ____, duly adopted at a meeting of the City Council held on the 20th day of January, 2026.

Sandra Wasson
Cadillac City Clerk

EXHIBIT A

**ORDINANCE NO. _____
AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

THE CITY OF CADILLAC ORDAINS:

Section 1. Amending Zoning District Map.

The City hereby amends the City Zoning Map to change the R-2, One-Family Residential District zoning designation and established use district as shown on the City Zoning Map for the real property legally described as:

LOT 12, BLOCK 108, J. CUMMER & SON'S 2ND ADDITION TO CITY OF
CADILLAC, WEXFORD COUNTY, MICHIGAN

(Tax identification No. 10-058-00-036-00) (the "Parcel").

to the RM-1, Multiple-Family Residential District zoning designation and corresponding use district under Chapter 46 of the Cadillac City Code.

Section 2. Conditional Approval.

This rezoning is conditionally approved and subject to the use and development conditions established in the Conditional Rezoning Approval Agreement, attached as **Exhibit 1**, which is incorporated herein by reference and which includes the following conditions:

1. The Parcel shall only be as a two-family dwelling.
2. Nothing in this Ordinance shall relieve the Parcel's owner, or future owners, from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

Section 3. Severability.

Should any portion of this Ordinance be found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of this Ordinance.

Section 4. Repealer.

All other ordinances inconsistent with the provisions of this Ordinance are hereby repealed but only to the extent necessary to give this Ordinance full force and effect; provided, however, that if Section 2 is found invalid, then Section 1 shall no longer be of any force or effect.

Section 5. Effective Date.

This Ordinance shall take effect twenty (20) days after its publication as provided by law.

EXHIBIT 1 TO ORDINANCE NO. _____

CONDITIONAL REZONING AGREEMENT

THIS CONDITIONAL REZONING AGREEMENT made this ____ day of _____, 2026, by and between the City of Cadillac ("City"), a Michigan municipal corporation, whose offices are located at 200 N Lake St, Cadillac, MI 49601, and Cadillac Living LLC ("Owner"), the owner of the property that is the subject of this Agreement, whose address is 901 Lincoln Street, Cadillac, MI 49601.

WHEREAS, Owner submitted an application to rezone certain real property ("Property") located in the City of Cadillac, Michigan, legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE
VILLAGE OF CLAM LAKE, CITY OF CADILLAC,

from its current designated as zoning classification R-2, One-Family Residential to RM-1, Multiple-Family Residential District pursuant to the City of Cadillac Zoning Ordinance to use the property for a two-family dwelling; and

WHEREAS, Owner voluntarily offered, in writing, certain use limits as conditions of the rezoning; and

WHEREAS, pursuant to the Michigan Zoning Enabling Act, PA 110 of 2006, the City may approve rezoning conditions offered by an applicant and may establish a time period during which the conditions apply; and

WHEREAS, on December 22, 2025, the City of Cadillac Planning Commission voted to recommend approval of Owner's request to conditionally rezone the Property and to accept Owner's proposed limitations on the use of the Property as more specifically set forth in this Agreement; and

WHEREAS, on _____, 2026, the City of Cadillac City Council voted to approve Owner's requested conditional rezoning, accept Owner's proposed limitations on the use of the Property, and approve the terms and conditions of this Conditional Rezoning Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the City and Owner agree as follows:

1. Conditional Rezoning

Pursuant to Section 405 of the Michigan Zoning Enabling Act, MCL 125.3405, Owner's agrees to limit the use of the Property as set forth in this Agreement. Upon execution

of this Agreement by the parties, the City shall effectuate the conditional rezoning of the Property from zoning classification R-2, One-Family Residential, to RM-1, Multiple-Family Residential District.

2. Rezoning Conditions

Owner agrees that the development of the Property will proceed in accordance with the following conditions which have been offered by Owner as a condition of rezoning the Property:

- a. The Property shall only be used as a two-family dwelling.
- b. Nothing in this Ordinance shall relieve the Owner, or any future owner of the Property, from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

3. Future Development.

All development of the Property shall be in strict compliance with all applicable City Ordinances, regulations, and applicable building code and utility requirements.

4. Entire Agreement.

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof, and all prior or contemporaneous agreements or understandings with respect hereto shall be deemed merged into this Agreement.

5. No Oral Amendment or Modification.

No amendments, waivers or modifications hereof shall be made or deemed to have been made unless in writing and executed by the parties.

6. Amendment of Conditions.

During the time period for commencement of an approved development or use specified pursuant to the Zoning Ordinance or during any extension thereof granted by the City Council, the City shall not add to or alter the conditions in this Agreement. This Agreement may be amended thereafter in the same manner as was prescribed for the original rezoning and the Agreement.

7. Severability.

If any provision of this Agreement shall be declared invalid, illegal, or unenforceable by a court of competent jurisdiction, the remainder of this Agreement shall not be

affected thereby and this Agreement shall be construed as if those provisions were not contained in this Agreement.

8. Applicable Law.

This Agreement shall be interpreted and enforced according to the laws of the State of Michigan.

9. Recordation.

This Agreement will be filed by the City with the Register of Deeds of Wexford County for recording.

10. Violation and Enforcement.

The failure of any party to complain or enforce any act or omission on the part of another party, no matter how long the same may continue, shall not be deemed to be an acquiescence or waiver by such party of any of its rights hereunder. No waiver by any party at any time, express or implied, or any breach of any provision of this Agreement shall be deemed a waiver of a breach of any other provision of this Agreement or a consent to any subsequent breach of the same or any other provision of this Agreement. If any action by any party shall require the consent or approval of another party, such consent or approval of such action shall not be deemed a consent to or approval of any other provision of this Agreement.

11. Violation of Zoning Ordinance.

Any failure by Owner to comply with the terms and conditions of this Agreement constitutes a violation of the City's Zoning Ordinance, a nuisance per se and subjects Owner to the applicable penalties and remedies provided by law, including, but not limited to, immediate injunctive relief. Notwithstanding any other term or condition of this Agreement to the contrary, if Owner, its successors or assigns fails to comply with the use and development conditions of this Agreement or attempts to use or develop the Property contrary to Owner's offered use and development conditions, the Property conditionally rezoned to RM-1, Multiple-Family Residential District will immediately revert to its former zoning classification R-2 One-Family Residential District and any approval of the site plan for the proposed development shall terminate. In such an event, Owner may thereafter develop the Property only in accordance with a site plan that is approved by the Planning Commission and complies with all City zoning, engineering, building and fire codes, as well as Ordinances in effect at that time.

Nothing in this Agreement will relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

12. Binding Effect; Assignment.

This Agreement runs with the land and binds and inures to the benefit of City and the successors and assigns of Owner.

13. Effective Date.

The conditional rezoning approved by the City Council is effective as provided by law.

14. Time Period for Establishing Development or Use.

The approved development and/or use of the Property authorized by this Agreement must commence within 18 months after the conditional rezoning takes effect and thereafter proceed diligently to completion. Upon written request, this time may be extended by the City Council if (1) it is demonstrated to the City Council's reasonable satisfaction that there is a strong likelihood that the development and/or use will commence within the period of extension and proceed diligently thereafter to completion and (2) the City Council finds that there has not been a change in circumstances that would render the current zoning with the Agreement incompatible with other zones and uses in the surrounding area or otherwise inconsistent with sound zoning policy.

15. Subsequent Rezoning of Land.

If the Property is rezoned to a different zoning classification or to the same zoning classification but with a different or no agreement, whether as a result of a reversion of zoning pursuant to the Zoning Ordinance or otherwise, this Agreement shall cease to be in effect. Upon Owner's written request, the City Clerk will record with the Register of Deeds of the County in which the land is located a notice that the Agreement is no longer in effect.

16. City Right to Rezone.

Nothing in this Agreement, nor in the provisions of the Zoning Ordinance shall be deemed to prohibit the City from rezoning all or any portion of the Property to another zoning classification. Any rezoning shall be conducted in compliance with the Zoning Ordinance and the Zoning Enabling Act (MCL 125.1301 et seq.)

[SIGNATURE BLOCKS ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have caused this Conditional Rezoning Agreement to be executed effective as of the day and year first above written.

City of Cadillac, a Michigan municipal corporation

By: _____
David C. Powell, Mayor

By: _____
Sandra Wasson, City Clerk

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, 2026, by David C. Powell, its Mayor and Sandra Wasson, its Clerk, on behalf of the City of Cadillac.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Cadillac Living LLC (“Owner”)

By: _____
Name: Derek Hamp Its: Agent

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by Derek Hamp, agent of Cadillac Living LLC.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Prepared by/Return to:
Mallory E. Reader
Foster, Swift, Collins & Smith, P.C.
1700 East Beltline NE, Suite 200
Grand Rapids, Michigan 49525
(616) 726-2200

EXHIBIT B

NOTICE OF PUBLIC HEARING AND SUMMARY OF PROPOSED ORDINANCE

On January 20, 2026, the City Council of the City of Cadillac introduced Ordinance No. _____, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property.

NOTICE IS HEREBY GIVEN that a Public Hearing on the proposed ordinance will be held in the Council Chambers, Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan, on February 2, 2026, at 6:00 p.m., at a Meeting of the City Council.

The City of Cadillac complies with the "Americans with Disabilities Act." If auxiliary aids or services are required at a public meeting for individuals with disabilities, please contact Sandra Wasson, City Clerk, at least three (3) business days prior to any such meeting. The proposed ordinance is available for examination at the office of the City Clerk, 200 Lake Street, Cadillac, Michigan, and copies may be provided FOR a reasonable charge. The following is a summary of the proposed ordinance.

SUMMARY OF PROPOSED ORDINANCE NO. _____

Section 1. Map Amendment. Section 1 of the Proposed Ordinance amends the City of Cadillac Zoning Map to change the zoning classification of Parcel No. 10-058-00-036-00 from R-2 to RM-1.

Section 2. Conditional Approval. Section 2 of the Proposed Ordinance provides the rezoning is conditionally approved subject to the conditional rezoning approval agreement, which includes that the property may only be used as a two-family dwelling and that the owner is not relieved from any obligations to obtain a special use permit and site plan approval.

Section 3. Severability. Section 3 of the Proposed Ordinance provides that if any portion of the proposed ordinance is found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of the proposed ordinance.

Section 4. Repealer. Section 4 of the Proposed Ordinance repeals all ordinances inconsistent with the provisions of the Ordinance, but only to the extent necessary to give the Ordinance full force and effect.

Section 5. Effective Date. Section 5 of the Proposed Ordinance gives it effect 20 days after adoption.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Sandra Wasson, City Clerk

City of Cadillac
Resolution No. 2026-____
Page 12 of 12

Cadillac Municipal Complex
200 Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

City Council
200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
Tiyi Schippers

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkin

**CITY OF CADILLAC
PLANNING COMMISSION**

RESOLUTION NO. 2025-04

**RESOLUTION RECOMMENDING AN ORDINANCE TO AMEND THE ZONING ORDINANCE
TO CONDITIONALLY REZONE PROPERTY**

At a meeting of the Planning Commission of the City of Cadillac, Michigan, held on December 22, 2025, at 6:00 p.m. at the Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

PRESENT: _____ Host, Rice, Bunce, Baumann, Fent, Van Pelt, Putvin _____

ABSENT: _____ Schippers, Bosscher _____

The following resolution was offered by ___Baumann___ and supported by ___Vanpelt___.

WHEREAS, pursuant to the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City has authority to adopt and amend zoning ordinances establishing zoning districts regulating the use of land in the City; and

WHEREAS, Cadillac Living LLC ("Owner") owns real property in the City of Cadillac legally described as follows:

LOT 12, BLOCK 108, J. CUMMER & SON'S 2ND ADDITION TO CITY OF
CADILLAC, WEXFORD COUNTY, MICHIGAN

and whose tax identification number is 10-058-00-036-00, and commonly known as 620 Arthur Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-2, One-Family Residential; and

WHEREAS, Derek Hamp, on behalf of the Owner, submitted an application (the "Application") to the City Planning Commission requesting that the Parcel be rezoned to RM-1, Multiple-Family Residential, in order to use the Parcel for a two-family dwelling; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission held a public hearing regarding rezoning of the Parcel on December 22, 2025; and

WHEREAS, the Planning Commission wishes to recommend that the City Council approve the Application and adopt An Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (the "Ordinance," **Exhibit A**).

NOW, THEREFORE, the Planning Commission of the City of Cadillac resolves as follows:

1. The Planning Commission recommends that the City Council adopt An Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (the "Ordinance," **Exhibit A**).
2. The Planning Commission will forward this Resolution, along with the minutes of the public hearing and any written public comments received, to City Council for its consideration.
3. A copy of the Ordinance will be available for examination at the office of the Clerk, and copies may be provided for a reasonable charge.
4. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

Cadillac Planning Commission

Resolution No. 2025- _04_

Page 3 of 10

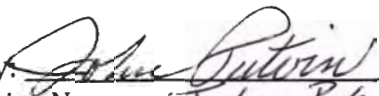
YEAS: _____6_____

NAYS: _____0_____

THE RESOLUTION WAS DECLARED ADOPTED.

STATE OF MICHIGAN)
)SS.
COUNTY OF WEXFORD)

I, John Putvin Jr., the Chair of the Planning Commission of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2025-04, duly adopted at a meeting of the Planning Commission held on the 22nd day of December 2025.

By: 
Print Name: John Putvin
Its: _____Chair_____

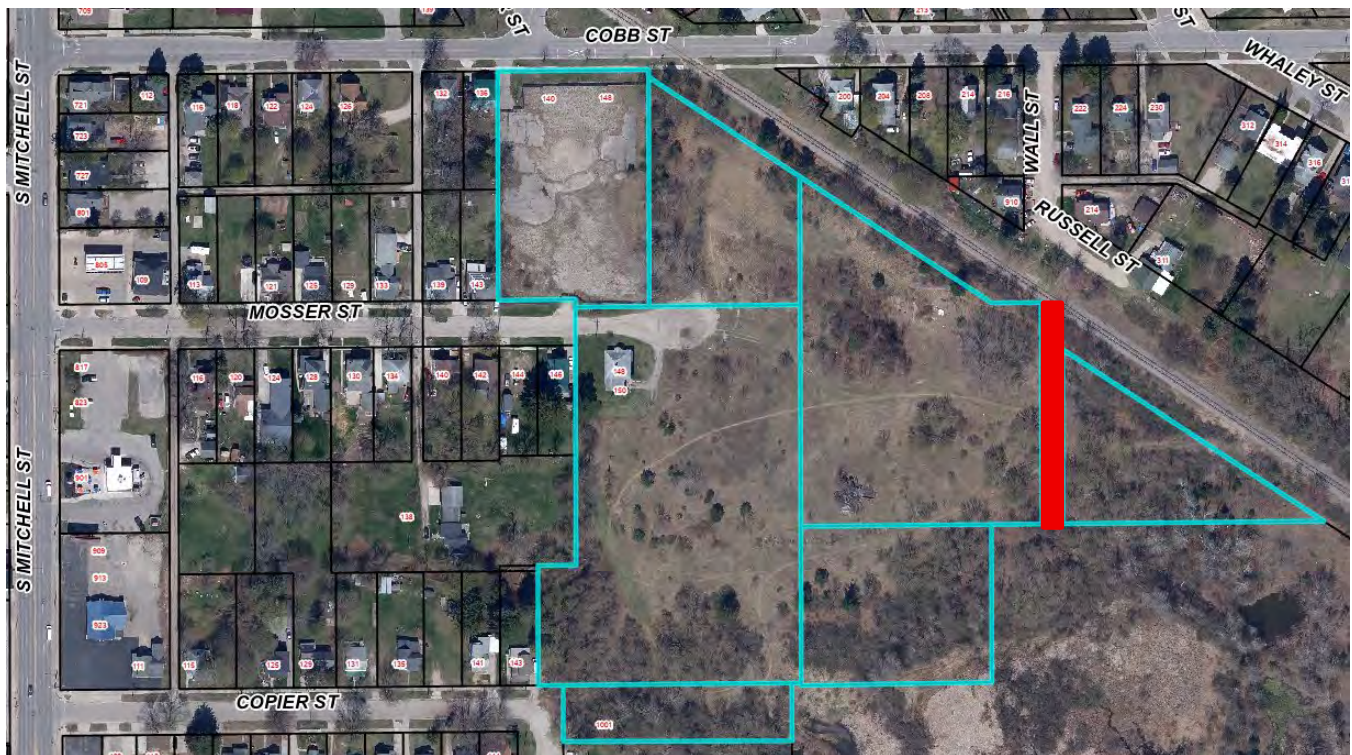
January 20, 2026

Council Communication

Re: Resolution to introduce ordinance vacating a portion of Wall St and reserving a public utility easement in favor of the City of Cadillac

The Cadillac Planning Commission voted unanimously at their September 29, 2025, meeting to approve and recommend that Council approve the vacation of a portion of Wall St. The vacation is described as that portion of Wall Street laying South of the Ann Arbor Railroad ROW, C.K. Russell's Subdivision of Out Lot No 14, City of Cadillac, Wexford County, Michigan.

This vacation request is necessary for a future development; Lakelynn Apartments, to take place on property owned by KMF Construction. In summary, the development consists of seven, three-story apartment buildings totaling 252 units. Shown below is an aerial photo of the recommended vacation in red. and the properties outlined in blue are those owned by KMF Construction. Other photos included on the next page are a rendering of the development and a site plan.



Recommended Action

Council is asked to adopt a resolution to introduce ordinance vacating a portion of Wall St and reserving a public utility easement in favor of the City of Cadillac and set public hearing for March 2, 2026.

**CITY OF CADILLAC
CITY COUNCIL
RESOLUTION NO. 2026-xxxx**

**RESOLUTION TO INTRODUCE ORDINANCE VACATING A PORTION OF WALL STREET
AND RESERVING A PUBLIC UTILITY EASEMENT IN FAVOR OF THE CITY OF CADILLAC**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 20th day of January, 2026, at 6:00 p.m.

PRESENT: COUNCIL MEMBERS:

ABSENT:

The following preamble and resolution was offered by Council Member xxxx and seconded by Council Member xxxx.

WHEREAS, the City of Cadillac ("City") is authorized by statute to control its streets, alleys, and public ways, and has the authority to vacate such streets, alleys, and public ways (MCL 117.4h; *Detroit Edison Co v City of Detroit*, 208 Mich App 26, 33; 527 NW2d 9 (1994)); and

WHEREAS, Section 5.6 of the Charter of the City provides that the City may, by ordinance and upon the affirmative vote of four or more members of the Council, "vacate, discontinue or abolish any highway, street, lane, alley or other public place, or park";

WHEREAS, Section 20-4 of Code of Ordinances of the City provides that the City Council may, by resolution or ordinance, vacate a street or alley or any portion of a street or alley located in a platted subdivision and may reserve an easement for public utility purposes or any other public purpose; and

WHEREAS, the Charter further provides that before final adoption of such an ordinance, the Council will hold a public hearing and will publish notice once at least twenty (20) days and again ten (10) days prior to the hearing; and

WHEREAS, the City owns an interest in a public street commonly known as a portion of Wall Street as described in the proposed ordinance, which street is located within the City (the "Street"); and

WHEREAS, the City wishes to consider adopting an ordinance vacating the Street but reserving to the City a public utility easement under, over and through the Street for the purpose of constructing, installing, operating, maintaining or repairing any and all public utilities, including water, sewer, gas, electric, cable, fiber optic, telecommunications and any similar public utilities, and authorizing the Mayor and/or the City Clerk to execute any and all documents necessary to vacate the Street, and to reserve a public utility easement and to make minor adjustments to the legal description of the Street as directed by the City Attorney; and

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Pursuant to Section 5.2 and 5.6 of the City Charter, the City introduces Ordinance No. 2026-____, Ordinance to Vacate a Portion of Wall Street and Reserve a Public Utility Easement in Favor of the City (the "Ordinance," attached as Exhibit 1).

2. A public hearing regarding the Ordinance will be held on the 2nd day of March, 2026, at 6:00 p.m. in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan.

3. The City Clerk is directed to publish a summary of the Ordinance in a newspaper of general circulation in the City of Cadillac, together with a notice setting the time and place for a public hearing on the Ordinance, in accordance with the Charter. The summary and notice of the hearing will be substantially in the form of Exhibit 2.

4. A copy of the Ordinance will be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: COUNCIL MEMBERS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2026-____, duly adopted at a meeting of the City Council held on the 20th day of January, 2026.

Sandra Wasson
City Clerk

EXHIBIT 1

ORDINANCE NO. _____
AN ORDINANCE TO VACATE A PORTION OF WALL STREET AND RESERVE A PUBLIC UTILITY EASEMENT IN FAVOR OF THE CITY

The City of Cadillac ordains:

Section 1. Vacate Portion of Wall Street and Reserve Utility Easement.

Pursuant to MCL 117.4h and the City Charter, the City vacates and abolishes a portion of Wall Street located in the City and legally described as:

THAT PORTION OF WALL STREET LAYING SOUTH OF THE ANN ARBOR RAILROAD ROW, C.K. RUSSELL'S SUBDIVISION OF OUT LOT NO 14, CITY OF CADILLAC, WEXFORD COUNTY, MICHIGAN

(the "Street"). Pursuant to MCL 560.257, the City reserves to itself a public utility easement under, over and through the Street for the purpose of constructing, installing, operating, maintaining, replacing and repairing any and all public utilities, including water, sewer, gas, electric, cable, fiber optic, telecommunications and any similar public utilities.

Section 2. Execution of Documents.

The Mayor and City Clerk are authorized to execute any and all documents necessary to vacate the Street, and, subject to the direction of the City Attorney, to make minor corrections to the legal description of the Street.

Section 3. Recording.

Pursuant to Section 20-4(b) of the City Code, the City Clerk is directed to record a certified copy of this Ordinance with the Wexford County Register of Deeds and to send a copy to the State Treasurer within 30 days of the adoption of this Ordinance.

Section 4. Repealer.

All other ordinances inconsistent with the provisions of this Ordinance are repealed to the extent necessary to give this Ordinance full force and effect.

Section 5. Severability.

If any provision of this Ordinance is held invalid, such holding will not affect the validity of the remaining provisions.

Section 6. Effective Date.

This Ordinance takes effect 20 days after its adoption and publication.

Approved this ____ day of _____, 2026.

Sandra Wasson, City Clerk

David C. Powell, Mayor

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

On this ____ day of _____, 2026, before me, a Notary Public, in and for said County, personally appeared David C. Powell, Mayor, and Sandra Wasson, City Clerk, on behalf of the City of Cadillac, who executed the foregoing Ordinance and acknowledged that they have executed it on behalf of the City of Cadillac in their capacity as its Mayor and City Clerk.

_____, Notary Public
County of _____, State of Michigan
My commission expires: _____

Prepared By and Return To:
Scott H. Hogan (P41921)
FOSTER, SWIFT, COLLINS & SMITH, PC
1700 E. Beltline Avenue NE, Suite 200
Grand Rapids, MI 49525
(616) 726-2200

EXHIBIT 2

NOTICE OF PROPOSED ORDINANCE AND PUBLIC HEARING

The City of Cadillac hereby gives notice of proposed Ordinance No. 2026-____, Ordinance Vacating to Vacate a Portion of Wall Street and Reserve a Public Utility Easement in Favor of the City.

NOTICE IS HEREBY GIVEN that a Public Hearing on the proposed ordinance will be held in the Council Chambers, Cadillac, Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on March 2, 2026, at 6:00 p.m., at a meeting of the City Council. The City of Cadillac complies with the "Americans with Disabilities Act." If auxiliary aids or services are required at a public meeting for individuals with disabilities, please contact Sandra Wasson, City Clerk, at least three (3) business days prior to any such meeting. Copies of the proposed ordinance are available for examination at the office of the City Clerk and copies may be provided at a reasonable charge. The following is a summary of the proposed ordinance.

ORDINANCE TO VACATE A PORTION OF WALL STREET AND RESERVE A PUBLIC UTILITY EASEMENT IN FAVOR OF THE CITY

Section 1. Vacate and Reserve. Section 1 of the proposed ordinance vacates that portion of Wall Street laying south of the Ann Arbor Railroad ROW, C.K. Russell's subdivision of out lot No 14, City of Cadillac, Wexford County, Michigan (the "Street"), and reserves an easement for the City for public utilities.

Section 2. Execution. Section 2 of the proposed ordinance authorizes the Mayor and the City Clerk to execute the documents necessary to vacate the Street, and to reserve a public utility easement in favor of the City and to make minor corrections to the legal description of the Street, as directed by the City Attorney.

Section 3. Recording. Section 3 of the proposed ordinance directs the City Clerk to record a copy of the ordinance with the Wexford County Register of Deeds and to send a copy to the State Treasurer.

Section 4. Repealer. Section 4 of the proposed ordinance provides that other ordinances inconsistent with the provisions of the ordinance are repealed but only to the extent necessary to give the ordinance full force and effect.

Section 5. Severability. Section 5 of the proposed ordinance provides that if a portion of the proposed ordinance is held in valid such holding will not affect the remaining provisions.

Section 6. Effective Date. Section 6 of the proposed ordinance provides that it will take effect 20 days after adoption and publication.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Sandra Wasson, City Clerk
Cadillac Municipal Complex
200 North Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

**CITY OF CADILLAC
PLANNING COMMISSION
RESOLUTION NO. 2025-_02_**

**RESOLUTION TO RECOMMEND VACATING A PORTION OF WALL STREET AND
RESERVING A PUBLIC UTILITY EASEMENT IN FAVOR OF THE CITY OF CADILLAC**

At a meeting of the Planning Commission of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 29th day of September, 2025, at 6:00 p.m.

PRESENT: __Rice, Fent, Putvin, Baumann, Bosscher, Host_____

ABSENT: __Schippers, Bunce, VanPelt_____

The following preamble and resolution was offered by __Baumann__and seconded by __Fent_____.

WHEREAS, the City of Cadillac ("City") is authorized by statute to control its streets, alleys and public ways, and has the authority to vacate such streets, alleys, and public ways (MCL 117.4h; *Detroit Edison Co v City of Detroit*, 208 Mich App 26, 33; 527 NW2d 9 (1994)); and

WHEREAS, Section 5.6 of the Charter of the City of Cadillac provides that the City may, by ordinance and upon the affirmative vote of four or more members of the Council, "vacate, discontinue or abolish any highway, street, lane, alley or other public place, or part thereof"; and

WHEREAS, Section 20-4 of the Cadillac City Code requires that, before the City Council may vacate any street or alley, the Cadillac Planning Commission must make a recommendation to the City Council regarding a street/alley vacation; and

WHEREAS, the City of Cadillac owns an interest in a portion of Wall Street (the "Street") described on Exhibit A; and

WHEREAS, the Planning Commission has determined that adopting an ordinance vacating the Street and reserving to the City a public utility easement is in the best interest of the public health, safety, and welfare.

NOW, THEREFORE, the Planning Commission of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. The Planning Commission recommends that the City vacate the Street described on Exhibit A.

2. Any and all resolutions that are in conflict with this Resolution are hereby repealed, but only to the extent necessary to give this Resolution full force and effect.

YEAS: _____6_____

NAYS: _____0_____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, John Putvin Jr., the Chair of the Planning Commission of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2025-02_, duly adopted at a meeting of the Planning Commission held on the 29th day of September, 2025.

By: John Putvin
Print Name: John Putvin
Its: Chair

EXHIBIT A

Portion of Street to be Vacated

That portion of Wall Street laying South of the Ann Arbor Railroad ROW, C.K. Russell's Subdivision of Out Lot No 14, City of Cadillac, Wexford County, Michigan.



City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor

David C. Powell

Mayor Pro-Tem

Robert J. Engels

Councilmembers

Bryan Elenbaas

Scott Hopkins

Ruthann French

RESOLUTION NO. 2026-____

**RESOLUTION AMENDING GENERAL APPROPRIATIONS ACT
FOR FISCAL YEAR 2026**

At a regular meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 20th day of January, 2026, at 6:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, the City adopted Ordinance No. 2025-07, Ordinance Adopting General Appropriations Act for Fiscal Year 2026 ("General Appropriations Ordinance") on May 19, 2025, which approved a general appropriations act for the 2026 fiscal year; and

WHEREAS, Section 10.5 of the City Charter provides that the City Council may make additional appropriations during the fiscal year for unanticipated expenditures required of the City; and

WHEREAS, Section 9 of the General Appropriations Ordinance authorizes the City Council to make such additional appropriations by resolution; and

WHEREAS, the City Council has determined that additional appropriations are required due to unanticipated expenditures;

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan,
resolves as follows:

1. The general appropriations act for the 2026 fiscal year is hereby amended to increase appropriations for Salaries, Wages, and Fringes in the 'Office of the City Manager' department in the amount of \$xx,xxx.xx.

2. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. _____, duly adopted at a regular meeting of the City Council held on the 20th day of January, 2026.

Sandra Wasson
Cadillac City Clerk



MEETING MINUTES
Cadillac Zoning Board of Appeals (ZBA)
5:30 P.M.
November 20, 2025

CONVENE MEETING

Chairperson Nichols called to order a meeting of the Cadillac Zoning Board of Appeals at 5:30 p.m. on November 20, 2025.

ROLL CALL

MEMBERS PRESENT: Coy, Nichols, Ault, Hutchinson, Host, Bontrager, Brown

MEMBERS ABSENT: None

STAFF PRESENT: Waldo, Timmer, and Mallory Reader (City Attorney, FosterSwift, attended remotely)

APPROVAL OF MEETING AGENDA

Motion by Bontrager to approve November 20, 2025, meeting agenda. Supported by Brown. The motion was unanimously approved on a roll call vote.

APPROVE OF OCTOBER 16, 2025, MEETING MINUTES

Motion by Brown to approve October 16th, 2025, meeting minutes. Supported by Coy. The motion was unanimously approved on a roll call vote.

PUBLIC COMMENT

None.

COMMUNICATIONS

Zoning Code Rewrite. Waldo gave an update on zoning code rewrite and reminded the board that there is an educational session taking place on December 3rd from 5:00-7:00pm at the Wellfield Training room.

PUBLIC HEARING AND BOARD ACTION

Variance application filed by Northern Steel, on behalf of Allen Property Holdings, owner of 1129 N Mitchell St, requesting a sign dimensional variance of 24sqft to allow for an addition to the existing pole sign.

Waldo reminded the members that they are able to visit the property requesting the variance as long as there is no ex parte communication during the visit and that the members visit is disclosed at the hearing. Waldo gave a brief presentation regarding the variance request citing the variance review standards.

Brian Goodman, applicant and owner of Northern Steel, addressed the board. Goodman stated that he assumed that the sign size would be allowed due to the size of other signs in the area. Goodman stated that the sign is crucial in getting the business message out to those that travel the area.

Coy asked Goodman if he would have the ability to mount the sign on the building as wall sign standards differ from pole sign standards. Goodman stated that this would not be a viable option.

Hutchinson asked Goodman what he feels the unique hardship that this property has to warrant this variance. Goodman stated that there is a financial hardship to be able to operate his business efficiently.

Nichols opened the public hearing. There being no public comment, Nichols closed the public hearing.

Board discussion took place on the request. Brown asked about previous sign approvals of signs that are larger than what is allowed now. Coy stated that a lot of the signs discussed were erected prior to regulations. Coy stated he didn't have a problem with a smaller secondary sign, it was the size issue. Brown stated he visited the site and the proposed sign was in the character of the neighborhood but he was reticent to go outside the zoning ordinances without a reason.

Brown suggested that the sign ordinance be updated as part of the zoning code update. Coy stated the sign portion of the current ordinance is lengthy and hopes it will be shortened. Waldo stated that the sign ordinance will be addressed during the update, and the completed ordinance should be finalized in May.

Brown suggested asking the applicant to come back and maybe a variance wouldn't be necessary after the ordinances have been updated.

Hutchinson stated the sign was fine, but the board needed to come up with a unique hardship that nobody else in the area had. Hutchinson asked Goodman if he could wait until May and Goodman indicated that delay was not in his business plan. Brown asked about Haring Township's sign ordinances, Nichols stated they are more lenient. Bontrager stated he liked the simplicity of the sign.

Motion by Bontrager to approve the variance for 1129 N Mitchell St. Supported by Brown. The motion was passed on a roll call vote with 5 Ayes and 2 Nays.

Waldo told the board legal needed to weigh in. Mallory Reader, City Attorney, reminded the board that they need to make findings on the record based on the zoning ordinance and suggested the board redo the motion with those findings.

Brown asked if comments could just be added to support why the motion was passed. Timmer stated the motion should be reiterated based upon the findings. Brown moved to accept the variance request and his reason was he believed the current ordinance presents a hardship to businesses.

Reader stated the board needed to make its findings based upon what the ordinance required not what the board thought the ordinance should require. Reader stated there were standards that needed to be met in order to grant a variance and the board needed to make its findings of those standards.

Hutchinson stated that the board needed to come up with what the hardship is. Brown stated he was trying to use this to help motivate the sign variance rewrite. Reader stated the ZBA can't make legislation. Coy stated one of the biggest reasons he voted yes was because he felt scale needed to be included in the ordinance.

Brown asked Coy if two parcels meant twice the sign square footage or if the sign could be put up on the second parcel.

Waldo directed the board to the variance review standards included in the packet. Hutchinson asked if the sign variance standards in section 46-664(j)3 also needed to be met. Reader stated yes, the specific sign variance standards also needed to be met. Reader stated per the zoning ordinance the board needed to make findings of all of the standards and could use discretion and judgment as to whether all the standards had been met but the board did not have discretion with the actual ordinance.

Brown asked if it needed to be tabled until the board had a chance to review the standards or if the board needed to bring it up point by point. Coy stated it was absolutely true the standards were not all being met. Reader added that either way the board needed to address the motion that was already adopted before proceeding. Host stated she thought it should be rescinded and start over. Ault stated she thought it should be postponed in order to find out if the two parcels could be used.

Bontrager stated he felt the board should have the power to not have to do all of the standards in order to help the people the board wants to keep in the community. Brown asked if the board had to listen to the City Attorney. Reader stated the board could do what it wants but that was her advice.

Coy stated he would like to rescind his vote from the previous motion based on section 46-664(j)3f. Timmer stated the previous motion should be rescinded not just his vote.

Bontrager asked Coy if the board had the power to go against the ordinance. Coy stated the boards primary job was to interpret and follow the ordinance. Hutchinson stated the problem was making the findings to support the motion. Brown stated the undue hardship was the antiquated sign ordinance.

Brown stated if the ordinances discourage businesses it is a real problem for the City of Cadillac and he felt the motion should stand. Bontrager stated he believed it should be the power of the board to not agree with the ordinance.

Brown stated the board had a motion, it had a second, it had a vote, the board approved it. Brown asked if the board was going to move on or talk about it more. Hutchinson stated if the motion

stands the findings needed to be put on the record. Brown asked if the things the board talked about could be part of the record to support the motion. Bontrager asked if everything would be reflected in the minutes of the meeting to show it was thoroughly discussed. Reader stated the findings should be reflected in the minutes and it was best to have them in a motion adopting the findings made on the record. Brown stated the board said a lot of things and asked if they would be in the minutes. Reader stated the board could make a motion to approve the variance application based upon the findings that were made on the record.

Motion by Hutchinson to rescind the previous motion granting the variance for 1129 N Mitchell St. Supported by Coy. The motion was unanimously approved on a roll call vote.

Motion by Brown to approve the variance for 1129 N Mitchell Street based on the findings as stated on the record. Supported by Bontrager. The motion was passed on a roll call vote with 5 Ayes and 2 Nays.

Discussion took place on the need for the sign ordinance to be updated. Brown requested that this item be placed on the next agenda for discussion.

Variance application filed by Megan & Joe Santangelo, owners of 207 Petrie Rd, requesting a variance to expand two non-conformities, extending the current side yard setback an additional 6 feet and increasing the lot coverage.

Waldo reminded the members that they are able to visit the property requesting the variance as long as there is no ex parte communication during the visit and that the members visit is disclosed at the hearing. Waldo gave a brief presentation regarding the variance request citing the variance review standards.

Nichols opened the public hearing

Megan Santengelo, applicant, addressed the board. Santegelo provided further context on the structure details and future design plans.

Phil Potvin, 129 Petrie Rd, voiced support of the variance request. Potvin provided the board with information related to the vacant lot next to 207 Petrie Rd, 217 Petrie Rd. This lot ownership is shared between seven families and allows them to have lake access. Potvin stated that the families are all in support of this variance request.

Bobbi Jones, 201 Petrie Rd, spoke in favor of the variance request and the improvement this will be to the neighborhood.

Dean DeKryger, 131 Petrie Rd, spoke in favor of the variance request.

Nicholas closed the public hearing.

Coy stated that he visited the site and observed the condition of the sunroom.

Motion by Coy to approve the variance as presented for 207 Petrie based on section 46-655(d)1. Supported by Ault. The motion was unanimously approved on a roll call vote.

NEW BUSINESS

None.

OLD BUSINESS

None.

BOARD MEMBER COMMENTS

Hutchinson asked who will be attending the educational session. Coy and Host stated that they will be in attendance.

PUBLIC COMMENTS

None.

ADJOURN

There being no further business, Brown motioned to adjourn the meeting of the ZBA at 6:52P.M, supported by Hutchinson. All in favor.



Planning Commission
November 24, 2025, Meeting Minutes

Call to Order

Meeting was called to order at 6:00PM

Roll Call

Planning Commission members present: Host, Rice, Bunce, Bosscher, Baumann, Fent, Van Pelt, Putvin

Planning Commission members absent: Schippers

Staff: Waldo, Pluger, Peccia and Mallory Reeder with Foster Swift

Approval of Agenda for November 24, 2025

- A. Motion to approve November 24, 2025, agenda by Baumann. Supported by Rice.
 - a. Motion approved unanimously.

Approval of October 27, 2025, Meeting Minutes

- A. Motion to approve October 27, 2025, minutes by Bosscher. Supported by Van Pelt.
 - a. Motion approved unanimously.

Public Hearings

- A. Special land use permit application filed by Nicholas Lietaert to allow for the short-term rental of a residential unit within the building at 820 S Mitchell St.
 - a. Waldo gave a presentation explaining that the project meets standards of the ordinance for Special Land Use.
 - b. Putvin opened the Public Hearing.
 - i. Linda Durant spoke in support of the application.
 - ii. Tony Tonello spoke in favor of the proposed Short-Term Rental location. Tonello asked the board if the applicant would be living in the basement.
 - c. Chairman Putvin closed the Public Hearing
 - d. Applicant, Nicholas Lietaert addressed the board. Lietaert stated that he will be living in the basement and the main level will be utilized as a wellness business.
 - e. Board discussion took place regarding the amenities the property will offer. Bosscher noted that this is the first STR that they have had in front of them for the B-3 district. Discussion took place on the review process of Special Land Uses.
 - f. Motion by Baumann to approve the Special Land Use permit as requested by the applicant as outlined in the staff report and as proposed by staff. Supported by Host.
 - i. Motion approved unanimously.
- B. Application filed by Jennifer & Bryan Haney requesting that 407 E Chapin Street be conditionally rezoned from R-3 to RM-1 on the condition that the subject property be used only as a single-family home or a bed and breakfast, subject to special land use approval.
 - a. Waldo gave a presentation detailing the Conditional Rezoning Application.
 - b. There being no changes from the presentation given at the previous board meeting, the board and applicant choose not to reiterate.

- c. Chairman Putvin opened public hearing. There being no comments, Putvin closed the hearing.
- d. Bosscher asked staff if there are any issues with this request. Waldo stated that she feels this request puts everyone in a better position. Pluger stated that as the HDC liaison, there were no red flags from and noted the comment received that was included in the packet.
- e. Motion by Baumann that the Planning Commission recommend approval of the conditional rezoning for 407 E Chapin St, from R-3 to RM-1 on the condition that the property only be used as a single-family home or a bed and breakfast subject to special land use; based upon the staff report, comments received and discussion taken place.
Supported by VanPelt.
 - i. Motion approved unanimously.

New Business

Communications

- A. Zoning Code Rewrite Update – Educational Session
 - a. Waldo reminded the board that there is an education session taking place on Wednesday, December 3rd from 5:00-7:00pm at the City Wellfield Training room.
- B. December Meeting Date
 - a. Waldo stated that there are applications that have been submitted for review at the December meeting. With the Holidays close to this meeting, she asked if quorum would be an issue. Feedback given from the board assured her that quorum would not be an issue.

Adjourn at 6:31 PM